

Depositor Protection

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1

Application and Definitions

1.1

Unless otherwise stated, this Part applies to:

1. (1) the `_FSCS_` ;
2. (2) `_UK banks_` ;
3. (3) `_credit unions_` ;
4. (4) `_Northern Ireland credit unions_` ;
5. (5) `_building societies_` ; and
6. (6) an `_overseas firm_` , if:
 1. (a) the `_firm_` has a `_Part 4A permission_` that includes `_accepting deposits_` ; and
 2. (b) `_deposits_` are held by a `_UK_` establishment of the `_firm_`.

1.2

Chapter 23 and Rule 20.2 apply to a `_UK branch_` of a `_Gibraltar-based credit institution_`.

1.3

This Part also applies to a `_firm_` which used to have a `_Part 4A permission_` to `_accept deposits_` but which has ceased to have a `_Part 4A permission_` to accept new `_deposits_` , or which is subject to a requirement not to accept new `_deposits_` , and which is not a member of the `_Gibraltar DGS_`.

1.3A

For the purposes of this Part, a `_deposit_` is held by a `_UK_` establishment or Gibraltar branch if it is assigned by the `_firm_` to an account of that `_UK_` establishment or Gibraltar branch (as applicable).

1.3B

For the purposes of this Part, references to a Gibraltar establishment or `_branch_` (as applicable) of a `_UK firm_` , means an establishment or `_branch_` established pursuant to `_Gibraltar-market access rights_`.

1.4

Unless otherwise stated, in this Part, the following definitions shall apply:

`_available financial means_`

means cash, `_deposits_` and `_low-risk assets_` which can be liquidated within a period not exceeding seven `_business`

days_.

base costs

means _management expenses_ which are not attributable to any particular _class_.

base costs levy

means a levy, forming part of the _management expenses levy_ , to meet the _base costs_ in the financial year of the _compensation scheme_ to which the levy relates.

class

means one of the classes to which the _FSCS_ allocates levies in accordance with the rules of the _compensation scheme_.

class A

means the _class_ which consists of _DGS members_.

class A2

means the class which consists of DGS members which are not credit unions.

class A tariff base

has the meaning given in 43.1.

claim

means a valid claim made in respect of a civil liability owed by a _DGS member_ to the claimant.

compensation date

means the date on which a determination is made by the _PRA_ , the _FSCS_ or a judicial authority that _deposits_ held by a _DGS member_ are _unavailable deposits_ such that the _DGS member_ is _in default_.

compensation recipient

means the _person_ to whom the _FSCS_ is required to pay compensation, as set out in Chapter 6.

compensation scheme

means the Financial Services Compensation Scheme established under section 213 of _FSMA_.

covered deposit

means the part of an _eligible deposit_ that does not exceed the coverage levels set out in Chapter 4.

credit union

has the meaning given in section 31 of the Credit Unions Act 1979.

deferred share

means:

1. (1) in relation to a _credit union_ , any share of a class defined as a deferred share by section 31A of the Credit Unions Act 1979;
2. (2) in relation to a _building society_ , any share of a class defined as deferred shares for the purposes of section 119 of the Building Societies Act 1986.

deposit

means:

1. (1) a credit balance which results from funds left in an account or from temporary situations deriving from normal banking transactions and which a _credit institution_ is required to repay under the legal and contractual conditions applicable, including a fixed-term deposit and a savings deposit, but excluding a credit balance where:
 1. (a) its existence can only be proven by a _financial instrument_ , unless it is a savings product which is evidenced by a certificate of deposit made out to a named person and which existed in the _UK_ , Gibraltar or a Member State of the _EU_ on 2 July 2014;
 2. (b) its principal is not repayable at par; or
 3. (c) its principal is only repayable at par under a particular guarantee or agreement provided by the _credit institution_ or a third party;
2. (2) a share in a _building society_ , excluding a _deferred share_ ;
3. (3) a share in a _credit union_ , excluding a _deferred share_ ; or
4. (4) a share in a _Northern Ireland credit union_ , excluding a deferred share.

deposit guarantee scheme

means the _compensation scheme_ for compensating persons in respect of _deposits_.

deposit guarantee scheme regulations

means the Deposit Guarantee Scheme Regulations 2015 (SI 2015/486).

depositor

means the holder or, in the case of a _joint account_ , each of the holders, of a _deposit_.

DGS base costs levy

means a _base costs levy_ imposed by the _FSCS_ on _DGS members_.

DGS compensation costs

means the costs incurred:

1. (1) in paying compensation under the _deposit guarantee scheme_ ;
2. (2) under section 214B or section 214D of _FSMA_ ; or
3. (3) by virtue of section 61 of the Banking Act 2009;

(including the costs of paying interest, principal and other costs of borrowing to pay such costs).

DGS compensation costs levy

means a levy imposed by the _FSCS_ on _DGS members_ to meet _DGS compensation costs_.

DGS EU Exit Regulations

means the Deposit Guarantee Scheme and Miscellaneous Provisions (Amendment) (EU Exit) Regulations 2018.

DGS levy

means a _DGS compensation costs levy_ or a _DGS management expenses levy_.

DGS management expenses levy

means a levy imposed by the _FSCS_ on _DGS members_ to meet _management expenses_ and which is made up of one or more of a _DGS base costs levy_ and a _DGS specific costs levy_.

DGS member

means:

1. (1) a _UK bank_ ;
2. (2) a _building society_ ;
3. (3) a _credit union_ ;
4. (4) a _Northern Ireland credit union_ ; or
5. (5) an _overseas firm_ if:
 1. (a) the _firm_ has a _Part 4A permission_ that includes _accepting deposits_ ; and
 2. (b) _deposits_ are held by a _UK_ establishment of the _firm_.

DGS specific costs

means _management expenses_ attributable to the _deposit guarantee scheme_ other than _base costs_ , which the _FSCS_ has incurred or expects to incur.

DGS specific costs levy

means a levy, forming part of the _DGS management expenses levy_ , to meet the _DGS specific costs_ in the financial year of the _deposit guarantee scheme_ to which the levy relates.

DGSD

means Directive 2014/49/EU of the European Parliament and of the Council of 16 April 2014 on deposit guarantee schemes (recast).

dormant account

has the meaning given in section 10 of the Dormant Bank and Building Society Accounts Act 2008.

electronic money institution

has the meaning given in regulation 2(1) and in regulation 20(5) of the _Electronic Money Regulations_.

exclusions view

means a single, consistent view of:

1. (1) an account holder's aggregate _deposits_ with a _firm_ limited to accounts that contain or may contain _eligible deposits_ to which the account holder is not absolutely entitled or which are _safeguarded funds_ ; or
2. (2) a _depositor's_ aggregate _eligible deposits_ with a _firm_ limited to accounts that are _not active_

and which contains the information required by 12.9.

exclusions list

means a list in the form set out in Section A1 of Annex 3 to this Part.

1. (1) [deleted]

2. (2) [deleted]

3. (3) [deleted]

European Economic Area

means the area established by the _EEA agreement_.

Gibraltar-based credit institution

means a _credit institution_ authorised as such by the Gibraltar Financial Services Commission that has its head office in and is incorporated in Gibraltar.

Gibraltar DGS

means the deposit guarantee scheme established in Gibraltar.

Gibraltar market access rights

means market access rights pursuant to which a _person_ incorporated in the _UK_ is entitled to establish a _branch_ or provide services in Gibraltar.

incoming firm

means a _firm_ which, immediately before _IP completion day_, was an incoming firm within the meaning of section 193 of _FSMA_ as in force at that date.

in default

describes the status of a _firm_ following a determination that its _deposits_ are _unavailable deposits_.

information sheet

means an information sheet containing the categories of information set out in the template in Annex 1 to this Part.

insolvency event

means:

1. (1) in relation to an _electronic money institution_, an _insolvency event_ as defined in regulation 22(3) of the _Electronic Money Regulations_ ;
2. (2) in relation to an _authorised payment institution_ or _small payment institution_, an _insolvency event_ as defined in regulation 23(18) of the _Payment Services Regulations_ ; or
3. (3) in relation to an _electronic money institution_, _authorised payment institution_ or _small payment institution_, entry into special administration as defined in regulation 7 of The Payment and Electronic Money Institution Insolvency Regulations 2021 (SI 2021/716).

investment

has the meaning given in section 22(4) of _FSMA_.

local authority

means

1. (1) in England and Wales, a local authority within the meaning of the Local Government Act 1972, the Greater London Authority, the Common Council of the City of London or the Council of the Isles of Scilly;
2. (2) in Scotland, a council within the meaning of the Local Government etc. (Scotland) Act 1994;
3. (3) in Northern Ireland, a district council within the meaning of The Local Government Act (Northern Ireland) 1972;
4. (4) an authority equivalent to (1), (2) or (3) located in a country outside the UK.

low-risk assets

means items falling into the first or second category of Table 1 of Article 336 of the _CRR_.

management expenses

has the meaning given in section 223(3) of _FSMA_.

mandatory contributions

means, at any time, the mandatory contributions paid before that time by _credit institutions_ to schemes of mandatory contributions established by the _UK_ for the purposes of covering the costs related to systemic risk, failure and resolution of institutions, up to the _target level_, less any amounts of such mandatory contributions previously borrowed by the _FSCS_ which have not been repaid.

micro, small and medium-sized enterprises

means micro, small and medium-sized enterprises as defined with regard to the annual turnover criterion referred to in Article 2(1) of the Annex to Commission Recommendation 2003/361/EC, taking into account all other provisions in the Annex to Commission Recommendation 2003/361/EC relevant to calculation of that criterion (including any relevant data from partner enterprises or linked enterprises in accordance with Article 3).

MLR

means the Money Laundering Regulations, Terrorist Financing and Transfer of Funds (Information on the Payer) Regulations 2017.

money laundering

has the meaning given in Article 1(3) of the _money laundering directive_.

money laundering directive

means Directive 2015/849/EU.

money-purchase benefits

means in relation to a member of a _personal pension scheme_ or an _occupational pension scheme_ or the widow or widower or surviving civil partner of a member of such a scheme, benefits the rate or amount of which is calculated solely by reference to the schemes assets which (because of the nature of the calculation) must necessarily suffice to provide the benefits which fall within section 181 of the Pensions Scheme Act 1993 and section 99 of the Pensions Act 2008, each as amended by section 29 of the Pensions Act 2011.

nominee company

means a _body corporate_ whose business consists solely of acting as a nominee holder of _investments_ or other property.

non-UK scheme

means a scheme established pursuant to the _DGSD_ in an _EEA State_.

Northern Ireland credit union

means a _firm_ which is either a society registered under the Credit Unions (Northern Ireland) Order 1985 or a society registered under the Industrial and Provident Societies Act (Northern Ireland) 1969 as a credit union.

not active

an account is not active if it:

1. (1) is a _dormant account_ ; or
2. (2) is an account for which the _firm_ has received formal notice of a legal dispute or competing claims to the proceeds of the account; or
3. (3) is an account owned or controlled by a person whose name appears on the ?Consolidated list of financial sanctions targets in the United Kingdom? that is maintained by HM Treasury or which is otherwise subject to restrictive measures imposed by national governments or international bodies.

occupational pension scheme

has the meaning given in article 3(1) of the _Regulated Activities Order_.

priority creditors

means, in relation to a _deposit_ which comprises _safeguarded funds_ , the persons whose claims in the event of an _insolvency event_ are to be paid from the asset pool in priority to all other creditors.

private residential property

means freehold, heritable or leasehold property (or the equivalent in another country), including land, which was, is, or is intended to become the _depositor?s_ only or main residence.

public authority

includes a government, central administrative authority, provincial authority, regional authority, municipal authority or _local authority_.

recapitalisation payment

means a payment required to be made under s 214E FSMA.

recapitalisation payment levy

means a levy imposed by the FSCS on class A2 to meet the expense of a recapitalisation payment.

[Note: under s 214E(4)FSMA, expenses of the compensation scheme include recapitalisation payments]

safeguarded funds

means a _deposit_ held by a _UK_ establishment of a _PRA_ -authorised _credit institution_ and made by:

1. (1) an _electronic money institution_ for the purposes of regulation 21 or 22 of the _Electronic Money Regulations_ ; or
2. (2) an _authorised payment institution_ or a _small payment institution_ for the purposes of regulation 23 of the

Payment Services Regulations.

single customer view

means a single, consistent view of a _depositor?s_ aggregate _eligible deposits_ with a _firm_ which contains the information required by 12.9, but excludes from view those accounts included in the _exclusions view_.

SCV effectiveness report

means a report from a _firm?s_ board of directors confirming that the _firm?s_ _SCV system_ satisfies the _SCV requirements_.

SCV requirements

means the requirements on _firms_ set out in Chapter 12.

SCV system

means a _firm?s_ system for satisfying the _SCV requirements_.

small local authority

means a _local authority_ with an annual budget of up to EUR 500,000.

small self-administered scheme

means an _occupational pension scheme_ of a kind described in article 4(4) and 4(5) of the Financial Services and Markets Act 2000 (Carrying on Regulated Activities by Way of Business) Order 2001 (SI 2001/1177).

statement of business

means the information required under 44.2.

target level

means 0.8% of the amount of _covered deposits_ (excluding _temporary high balances_) of _DGS members_.

THB person

has the meaning given in 10.1A.

unavailable deposit

means a _deposit_ that is due and payable but has not been paid by a _DGS member_ (or, in the case of 3.2(2), a _PRA-authorised person_) under the applicable legal or contractual conditions where either:

1. (1) (in accordance with the _deposit guarantee scheme regulations_) the _PRA_, or the _FSCS_ in the case of a _credit union_ or a _Northern Ireland credit union_, has determined that in its view the _DGS member_ or _PRA-authorised person_ appears to be unable for the time being, for reasons which are directly related to its financial circumstances, to repay the _deposit_ and has no current prospect of being able to do so; or
2. (2) a judicial authority has made a ruling for reasons which are directly related to the _DGS member_ or _PRA-authorised person's_ financial circumstances and the ruling has had the effect of suspending the rights of _depositors_ to make claims against it.

Unless otherwise defined, any italicised expression used in this Part and in the _CRR_ has the same meaning as in the _CRR_.

2

Eligibility

2.1

This Chapter applies to the _FSCS_ and _firms_.

2.2

The provisions in this rule determine whether a _deposit_ is an _eligible deposit_ :

1. (1) A _deposit_ is an _eligible deposit_ only if it is held by:

1. (a) a _UK_ establishment of a _DGS member_ ; or
2. (b) a _branch_ of a _DGS member_ established in Gibraltar pursuant to _Gibraltar market access rights_.

2. (2) [Deleted.]

3. (3) A _deposit_ is, subject to the other rules in this Chapter, an _eligible deposit_ if it is held by a _UK_ or Gibraltar establishment of a _PRA-authorized person_ which:

1. (a) had a _Part 4A permission_ to accept such _deposits_ at the time the _deposit_ was accepted but no longer has permission to accept _eligible deposits_ , or is subject to a requirement preventing it from doing so; and
2. (b) is not now a member of the _Gibraltar DGS_ which protects such _deposits_.

4. (4) Subject to (5), the following are not _eligible deposits_ :

1. (a) a _deposit_ made by another _credit institution_ ;
2. (b) _own funds_ ;
3. (c) a _deposit_ arising out of a transaction in connection with which there has been a criminal conviction for _money laundering_ ;
4. (d) a _deposit_ by a _financial institution_ ;
5. (e) a _deposit_ by an _investment firm_ ;
6. (f) a _deposit_ the holder and any beneficial owner (as defined in regulation 3 of the _MLR_) of which have not had their identity verified:
 1. (i) at any time in the manner set out in regulation 28 of the _MLR_ by the _DGS member_ or by a third party who falls within regulation 39(3) of the _MLR_ ;
 2. (ii) if their identity was verified prior to 26 June 2017, in accordance with regulation 9 of the Money Laundering Regulations 2007 (in which case, the term beneficial owner in (f) above shall have the meaning given in regulation 6 of the Money Laundering Regulations 2007); or
 3. (iii) in each case, equivalent:
 1. (1) Gibraltar requirements, provided that, if their identity is so verified after _IP completion day_ , the _deposit_ referred to in (f) is held by a branch of a _DGS member_ established in Gibraltar pursuant to _Gibraltar market access rights_ ; or
 2. (2) _European Economic Area_ requirements, provided that their identity was so verified prior to _IP completion day_.
7. (g) a _deposit_ by an _insurance undertaking_ or a _reinsurance undertaking_ ;
8. (h) a _deposit_ by a collective investment undertaking;
9. (i) a _deposit_ by a pension or retirement fund (but excluding _deposits_ by _personal pension schemes_ , _stakeholder pension schemes_ and _occupational pension schemes_ of _micro, small and medium-sized enterprises_);
10. (j) a _deposit_ by a _public authority_ , unless it is a _small local authority_ ;

11. (k) a debt security issued by the _DGS member_ and any liabilities arising out of own acceptances and promissory notes;

5. (5) But 2.2(4)(a), (d) and (e) shall not exclude from eligibility a _deposit_ to the extent this Part provides for compensation to be calculated by reference to the position of:

1. (a) a _person_ ; or
2. (b) a grouping without legal personality,
6. other than the _depositor_.

2.3

A firm, must at least annually, take reasonable steps to confirm that a depositor that it has classified as a small local authority continues to be a small local authority, using the exchange rate prevailing on the 3 July immediately preceding the date on which any confirmation is undertaken.

3

Circumstances in Which the FSCS Pays Compensation in Respect of Eligible Deposits

3.1

This Chapter applies only to the _FSCS_.

3.2

The _FSCS_ must pay compensation in accordance with this Part in respect of an _eligible deposit_ if it is satisfied that the _eligible deposit_ is a _deposit_ with either:

1. (1) a _DGS member_ which is _in default_ ; or
2. (2) a _PRA-authorized person_ which is _in default_ and which:
 1. (a) had a _Part 4A permission_ to accept such _deposits_ at the time the _deposit_ was accepted but no longer has permission to accept _eligible deposits_ , or is subject to a requirement preventing it from doing so; and
 2. (b) is not a member of the _Gibraltar DGS_ which covers such _deposits_.

4

Limits on Compensation Payable

4.1

This Chapter applies only to the _FSCS_.

4.2

The maximum compensation sum payable for the aggregate _eligible deposits_ of each _depositor_ is £120,000, save that additional compensation may be payable in cases to which 4.3 or 4.4 apply.

4.3

Subject to 4.4, the maximum compensation sum payable for a _temporary high balance_ is £1,400,000, save that no limit shall apply to the compensation payable for a _temporary high balance_ arising from a payment in connection with personal injury or incapacity.

4.4

1. (1) The maximum compensation sums in 4.2 and/or 4.3 are temporarily increased if, following the death of a holder of a joint account in which an eligible deposit is held:
 1. (a) the deceased's share passes automatically to at least one other depositor, and
 2. (b) at least one person is:
 1. (i) an individual absolutely entitled to the whole or part of the eligible deposit (including under a trust an individual with a vested beneficial interest in the eligible deposit as at the compensation date); or
 2. (ii) a trustee holding the eligible deposit on behalf of individuals who do not have a vested beneficial interest in it as at the compensation date (treating co-trustees as a single person, in accordance with 6.5);
2. (2) the temporary increase under (1) is calculated by dividing each maximum compensation sum that would have been attributable to the deceased between each person referred to in (1)(b);
3. (3) in the absence of contrary provision, such division shall be made equally to the nearest penny;
4. (4) where more than one holder of the joint account dies, the provisions of this rule are cumulative; and
5. (5) any increase in a maximum compensation sum under this rule applies for a period of six months, beginning with the relevant date of death.

5

Calculating Compensation

5.1

This Chapter applies only to the FSCS.

5.2

1. (1) Compensation shall be calculated by reference to eligible deposits held on the compensation date; or
2. (2) Where an insolvency event occurs in relation to a depositor of safeguarded funds after the compensation date, compensation relating to its deposit shall be calculated by reference to eligible deposits held by it, and the position of its priority creditors, on the date the insolvency event occurred and taking account of any compensation already paid in respect of the safeguarded funds.

5.3

The limit provided for in 4.2 applies to the aggregate eligible deposits placed by a depositor with the same credit institution, irrespective of the number of accounts, the currency, or whether such eligible deposits are held by a UK establishment or a Gibraltar establishment of a DGS member.

5.4

The share of each depositor of a joint account shall be considered separately in calculating the limits provided for in 4.2 and 4.3, except where 5.5 applies. In the absence of contrary provision, the joint account shall be divided equally among the depositors to the nearest penny.

5.5

Deposits in an account to which two or more persons are entitled as members of a business partnership, association or grouping of a similar nature, without legal personality, must be aggregated and treated as if made by a single depositor for the purpose of calculating the limits provided for in 4.2 and 4.3.

5.6

Where several persons are absolutely entitled to a beneficial interest in a deposit, the share of each, under the arrangements subject to which the deposit is managed, shall be considered separately in calculating the amount

payable to each of them.

5.7

Where several persons are absolutely entitled to a beneficial interest in a deposit, and some of them are persons whose own deposits would not be eligible deposits, the FSCS must adjust the amount of the overall deposit to eliminate the part of it which, in the FSCS's view, relates to those beneficiaries' interest in the overall deposit.

5.7A

1. (1) Where a deposit is part of safeguarded funds, the share of each priority creditor that relates to those safeguarded funds shall be considered separately in calculating the amount payable in relation to that deposit;
2. (2) Where a priority creditor is a person whose own deposit would not be an eligible deposit, the FSCS must in calculating the amount payable under (1) adjust the amount of the overall deposit to eliminate the part of it which, in the FSCS's view, relates to that priority creditor;
3. (3) The part of the overall deposit that relates to a priority creditor shall be determined by the FSCS on the basis of the FSCS's reasonable estimate of the amount of the overall deposit that would be used to pay the claims to that priority creditor on the occurrence of an insolvency event.

5.8

Liabilities of the depositor against the DGS member shall not be taken into account when calculating the compensation sum.

5.9

Except where the compensation sum arises from a temporary high balance, the FSCS shall reimburse interest owed on eligible deposits which had accrued, but has not been credited, at the compensation date. The limit provided for in 4.2 shall not be exceeded by the payment of any such interest.

6

Paying Compensation

6.1

This Chapter applies to the FSCS.

6.2

The FSCS must pay any compensation to the depositor, with the following exceptions:

1. (1) where the FSCS may make payments on behalf of a non-UK scheme in accordance with the DGS EU Exit Regulations;
2. (2) [deleted.]
3. (3) where the FSCS is required to make payments to a person other than the depositor in accordance with section 214B or section 214D of FSMA or section 61 of the Banking Act 2009;
4. (4) where the depositor directs that any compensation be paid to another person, the FSCS may pay the compensation as directed by the depositor;
5. (5) where the account holder is not absolutely entitled to the eligible deposit:
 1. (a) if another person (A) is absolutely entitled to the eligible deposit, A is the person entitled to compensation in respect of the deposit, and accordingly the FSCS must pay any compensation to A (or, where A (or a person

who has authority to act on behalf of A) directs that any compensation be paid to another _person_, the _FSCS_ may pay the compensation as directed by A (or a _person_ who has authority to act on behalf of A)), provided that A has been identified or is identifiable;

2. (b) if no _person_ is absolutely entitled to the _eligible deposit_, the _FSCS_ must pay any compensation in accordance with such of 6.3, 6.4, 6.5 and 6.6 as applies; and

6. (6) in the case of _safeguarded funds_, the _FSCS_ must, subject to 6.2A ? 6.2C:

1. (a) pay compensation to the _priority creditors_ (B) in relation to whom compensation is payable;
2. (b) pay compensation to C, where B (or a person with authority to act on behalf of B (D)) has directed that any compensation payable to B should be paid to C; or
3. (c) if satisfied that B would be in no worse position than B would be if the compensation was paid in accordance with (a), pay compensation to an account maintained by the _depositor_ for the purposes of regulation 21 or 22 of the _Electronic Money Regulations_; or regulation 23 of the _Payment Services Regulations_.

6.2A

The _FSCS_ may pay compensation:

1. (1) under 6.2(6) only where B (and such of C and D as are relevant) has been identified (or is identifiable) and their identity has been verified as required by the _MLR_;
2. (2) under 6.2(6)(a) and (b) only where an _insolvency event_ has occurred in relation to the _depositor_.

6.2B

If it is not the case that the conditions for payment under at least one of 6.2(6)(a), (b) or (c) are met then the _FSCS_ must not pay compensation in respect of _safeguarded funds_.

6.2C

The _FSCS_ must consult the _FCA_ and _PRA_ before making payments under 6.2(6).

6.3

If a _person_ is:

1. (1) a trustee (other than a bare trustee); or
2. (2) the operator of, or the _person_ carrying on the _regulated activity_ of winding up, a _stakeholder pension scheme_ (which is not an _occupational pension scheme_) or _personal pension scheme_.

the _FSCS_ must treat that person's entitlement to compensation in this capacity as separate from the entitlement to compensation in any other capacity, as if the two entitlements were held by different _persons_.

6.4

If a _deposit_ is held:

1. (1) for the trustees of a _small self-administered scheme_, an _occupational pension scheme_ of _micro, small and medium sized enterprise_, or the trustee or operator of, or the _person_ carrying on the _regulated activity_ of winding up, a _stakeholder pension scheme_ (which is not an _occupational pension scheme_) or _personal pension scheme_;
2. (2) for one or more members of a pension scheme (or, where relevant, the beneficiary of any member) whose benefits are _money-purchase benefits_.

the _FSCS_ must treat the member or members (or, where relevant, the beneficiary of any member) separately as _persons_ entitled to receive compensation.

6.5

If any group of persons are:

1. (1) co-trustees (other than bare co-trustees); or
2. (2) operators of, or persons carrying on the regulated activity of winding up, a stakeholder pension scheme (which is not an occupational pension scheme) or a personal pension scheme

(or any combination thereof), the FSCS must treat them as a single and continuing person distinct from the person who may from time to time be the trustees, or the operators or persons winding up the relevant pension scheme.

6.6

Where the same person is:

1. (1) trustee for different trusts or for different stakeholder pension schemes (which are not occupational pension schemes) or personal pension schemes; or
2. (2) the operator of, or the person carrying on the regulated activity of winding up, different stakeholder pension schemes (which are not occupational pension schemes) or personal pension schemes,

the FSCS shall treat that person's entitlement to compensation in respect of each of these trusts or schemes as if they were entitlements of a different person.

6.7

Where any of the provisions of 6.3, 6.5 or 6.6 apply, the FSCS must try to ensure that any amount paid to:

1. (1) the trustee; or
2. (2) the operator of, or the person carrying on the regulated activity of winding up, a stakeholder pension scheme (which is not an occupational pension scheme) or personal pension scheme
3. is, in each case:
4. (3) for the benefit of members or beneficiaries whose own deposits would be eligible deposits; and
5. (4) no more than the amount of the loss suffered by those members or beneficiaries.

6.8

Where a person holds a deposit as the personal representative of another or on behalf of another, the FSCS must treat the personal representative or the person acting on behalf of another in respect of that deposit as if they were standing in the shoes of that other person.

6.9

In applying this Chapter to deposits held with a branch of a DGS member in Gibraltar, the FSCS must interpret references to:

1. (1) persons entitled as personal representatives, trustees, bare trustees, operators of pension schemes or persons carrying on the regulated activity of winding up pension schemes; or
2. (2) persons having a joint account or joint interest in a deposit or carrying on business in partnership,

as references to persons entitled, under the law of Gibraltar, in a capacity appearing to the FSCS to correspond as nearly as may be to that capacity.

6.10

For the purposes of this Part, the cases in which A is absolutely entitled to the _eligible deposit_ include where:

1. (a) A is a beneficiary under a bare trust;
2. (b) the account holder is a _nominee company_ which is holding money in the account for A;
3. (c) A is a client in respect of money which the account holder is treating as client money of A in accordance with _FCA_ rules, the SRA Accounts Rules 2011 or an equivalent regime; or
4. (d) the _FSCS_ is otherwise satisfied that A is absolutely entitled to the ___eligible deposit_ taking into account any information that the _FSCS_ considers relevant.

7

Form and Method of Compensation

7.1

This Chapter applies only to the _FSCS_.

7.2

The _FSCS_ may pay compensation in any form and by any method (or any combination of them) that it determines is appropriate including, without limitation:

1. (1) by paying the compensation (on such terms as the _FSCS_ considers appropriate) to a _DGS member_ or a _Gibraltar-based credit institution_ with an establishment in the _UK_ which agrees to become liable to the _compensation recipient_ in a like sum;
2. (2) by paying compensation directly into an existing deposit account of (or for the benefit of) the _compensation recipient_ , with a _DGS member_ or a _Gibraltar-based credit institution_ with an establishment in the _UK_ (but before doing so the _FSCS_ must take such steps as it considers appropriate to verify the existence of such an account and to give notice to the _depositor_ of its intention to exercise this power);
3. (3) where two or more _persons_ are absolutely entitled to a _deposit_ , by accepting communications from and/or paying compensation to any one of those _persons_ where this is in accordance with the terms and conditions for communications and withdrawals of the _eligible deposit_.

7.3

This Chapter is subject to:

1. (1) Chapter 6;
2. (2) section 214B and section 214D of _FSMA_ ; and
3. (3) section 61 of the Banking Act 2009.

8

Currency of Compensation

8.1

This Chapter applies only to the _FSCS_.

8.2

The _FSCS_ must make compensation payments in respect of _eligible deposits_ in pounds sterling. Where the account in which the _eligible deposit_ was held was maintained in a different currency, the _FSCS_ must use the

exchange rate applying on the _compensation date_.

8.3

[Deleted.]

9

Time Limits

9.1

This Chapter applies only to the _FSCS_.

9.2

The _FSCS_ must make available the compensation in respect of _eligible deposits_ within the applicable time period and as soon as reasonably practicable after:

1. (1) it is satisfied that the conditions in 3.2 have been met; and
2. (2) it has calculated the amount of compensation due to the _compensation recipient_.

9.3

The applicable time period referred to in 9.2 is the period starting on the day following the _compensation date_ and ending seven business days later

1. (1) [deleted]
2. (2) [deleted]
3. (3) [deleted]
4. (4) [deleted]

unless 6.2(5)) applies (or the _FSCS_ reasonably believes that it may) or in the case of _safeguarded funds_ , in which case it ends three months later.

9.4

The _FSCS_ may decide to defer the payment of compensation beyond the time period set out in 9.3 where:

1. (1) the compensation a _person_ is or may be entitled to receive is uncertain;
2. (2) the _deposit_ is subject to a legal dispute;
3. (3) the _deposit_ is subject to restrictive measures imposed by national governments or international bodies;
4. (4) there has been no transaction on the account within the last 24 months;
5. (5) the amount to be repaid is deemed to be part of a _temporary high balance_ , in which case 10.8 applies; or
6. (6) [deleted.]
7. (7) the _depositor_ or the _compensation recipient_ has been charged with an offence arising out of or in relation to _money laundering_.

9.5

The _FSCS_ may decide not to pay compensation where there has been no transaction on the account in which the _deposit_ is held within the 24 months prior to the _compensation date_ and the amount of the _deposit_ is lower than the administrative costs that would be incurred by the _FSCS_ in paying compensation.

9.6

[Deleted.]

10

Temporary High Balances

10.1

This Chapter applies only to the _FSCS_.

10.1A

For the purposes of evaluating _temporary high balances_, a ? _THB person_ ? is:

1. (1) an individual absolutely entitled to the whole or part of the _eligible deposit_ (including under a trust an individual with a vested beneficial interest in the _eligible deposit_ as at the _compensation date_); or
2. (2) a trustee holding the _eligible deposit_ on behalf of individuals who do not have a vested beneficial interest in it as at the _compensation date_ (treating co-trustees as a single _person_ , in accordance with 6.5).

10.2

In order to qualify as a _temporary high balance_ , a part of an _eligible deposit_ in excess of the coverage limit provided for in 4.2 must meet at least one of the following additional criteria:

1. (1) it comprises:
 1. (a) monies deposited in preparation for the purchase of a _private residential property_ (or an interest in a _private residential property_) by or on behalf of the _THB person_ ;
 2. (b) monies which represent the proceeds of sale of a _private residential property_ (or an interest in a _private residential property_) of or on behalf of the ___THB person_ ;_ or
 3. (c) monies which represent the proceeds of an equity release by or on behalf of the ___THB person_ _in a _private residential property_ ;
2. (2) it comprises sums paid to or for the benefit of the ___THB person_ _in respect of:
 1. (a) benefits payable under an insurance policy;
 2. (b) a claim for compensation for personal (including criminal) injury;
 3. (c) State benefits paid in respect of a disability or incapacity;
 4. (d) a claim for compensation for wrongful conviction;
 5. (e) a claim for compensation for unfair dismissal;
 6. (f) their redundancy (whether voluntary or compulsory);
 7. (g) their marriage or civil partnership;
 8. (h) their divorce or dissolution of their civil partnership; or
 9. (i) benefits payable on retirement;
3. (3) it comprises sums paid to or for the benefit of the ___THB person_ _in respect of:
 1. (a) benefits payable on death;
 2. (b) a claim for compensation in respect of a person?s death; or
 3. (c) a legacy or other distribution from the estate of a deceased person;
4. (4) it is held in an account on behalf of the personal representatives of a deceased person for the purpose of realising and administering the deceased?s estate; or
5. (5) it otherwise serves a social purpose provided for, or of the type provided for, in the law of a part of the _United

Kingdom_ , which is linked to the marriage, civil partnership, divorce, dissolution of civil partnership, retirement, incapacity, death of an individual, or to the buying or selling of a _THB person's _only or main residence that is not freehold, heritable or leasehold property.

10.3

[Deleted.]

10.3A

1. (1) Following the _compensation date_ , the _FSCS_ must review the _single customer view_ and any _exclusions view_ of each _depositor_ with the _DGS member_ ; and
2. (2) where an _eligible deposit_ is held by or on behalf of a _THB person_ , the _FSCS_ must give written notice to the _depositor_ in respect of any aggregate _eligible deposits_ in excess of the coverage levels set out in 4.2 of the following:
 1. (a) that the _THB person_ may be entitled to additional compensation if all or part of the _eligible deposit_ in excess of the coverage levels provided for in 4.2 qualifies as a _temporary high balance_ ;
 2. (b) that in order to claim such additional compensation, the _depositor_ must provide the _FSCS_ with a written application and evidence supporting the _claim_ that all or part of the _eligible deposit_ in excess of the coverage levels provided for in 4.2 qualifies as a _temporary high balance_ ;
 3. (c) that the _depositor_ may make more than one _claim_ for a _temporary high balance_ if there are multiple events giving rise to a _temporary high balance_ and/or more than one _THB person_ with a _claim_ ; and
 4. (d) the date by which such written application and supporting evidence should be submitted to the _FSCS_.

10.4

The _FSCS_ must pay compensation in respect of a _temporary high balance_ in accordance with 4.3 if it is satisfied that there is a sufficient link between an event giving rise to a _temporary high balance_ and the part of the _eligible deposit_ in excess of the coverage levels provided for in 4.2, taking into account the following considerations:

1. (1) the written application and evidence provided by the _depositor_ under 10.3; and
2. (2) any other information that the _FSCS_ considers relevant.

10.5

The _FSCS_ must pay compensation to a _person_ entitled to receive compensation in accordance with 4.3 in respect of each _temporary high balance_ that the _person_ has with any one _DGS member_.

10.6

The _FSCS_ may pay compensation in respect of a _temporary high balance_ to a _person_ who makes a _claim_ on behalf of another _person_ if the _FSCS_ is satisfied that the _person_ on whose behalf the _claim_ is made would have been paid compensation by the _FSCS_ in respect of that _temporary high balance_ had the person been able to make the _claim_ themselves, or to pursue their application for compensation further.

10.7

The protection for _temporary high balances_ under 4.3 shall, subject to 4.4, run for a period of six _months_ from the later of:

1. (1) the first date on which a _temporary high balance_ is credited to a _depositor's_ account; and
2. (2) the first date on which the _temporary high balance_ becomes legally transferable to the _depositor_ or, as the case may be, the _THB person_.

10.7A

[Deleted.]

10.8

The _FSCS_ must pay compensation in respect of a _temporary high balance_ within three _months_ of the _compensation date_, unless one or more of 10.9 to 10.11 applies.

10.9

The _FSCS_ may defer payment in respect of a _temporary high balance_ for a period in excess of the period specified in 10.8 where:

1. (1) the _depositor_ provides the written application and evidence referred to in 10.3 to the _FSCS_ more than two _months_ following the date of the written notice from the _FSCS_ under 10.3;
2. (2) the _FSCS_ has informed the _depositor_ that the _FSCS_ is contacting a third party to ask for additional information necessary to determine the _claim_; or
3. (3) one or more of the circumstances set out in 9.4-(7\)" (1)-(7) arise.

10.10

If the _FSCS_ considers that the written application and evidence provided by a _depositor_ under 10.3 does not demonstrate a sufficient link between an event giving rise to a _temporary high balance_ and the _eligible deposit_ being in excess of the coverage levels provided for in 4.2, the _FSCS_ must write promptly to that _depositor_ to:

1. (1) request any additional information that the _FSCS_ considers necessary to determine the _claim_ (within such time as the _FSCS_ may specify); or
2. (2) confirm that the _FSCS_ has determined that the eligible deposit is not a _temporary high balance_ and that it rejects the _claim_.

10.11

If the written application or evidence provided by the _depositor_ under 10.3 contains any material inaccuracy or omission, the _FSCS_ may reject the _claim_ for compensation unless this is considered by the _FSCS_ to be wholly unintentional.

10.12

Where all or part of a _temporary high balance_ is transferred to another _DGS member_ after the start of the coverage period referred to in 10.7, the _FSCS_ must pay compensation if it considers that the transferred _deposit_ is sufficiently linked to the _temporary high balance_. The coverage period in 10.7 shall be calculated by reference to the point at which the _temporary high balance_ was credited to the first account.

10.13

Where the _FSCS_ rejects a _claim_ made under this Chapter, it must give:

1. (1) written reasons for its decision;
2. (2) a summary of any right to request an internal FSCS review of the decision; and
3. (3) a summary of any right to appeal the decision.

11

Marking and Information Requirements

11.1

A _firm_ must mark _eligible deposits_ in a way that allows for the immediate identification of such _deposits_.

11.2

A _firm_ must mark accounts (including client accounts and trust accounts) which are held on behalf of beneficiaries and which contain or may contain _eligible deposits_ in a way that allows immediate identification of such accounts.

11.3

A _firm_ must be able to provide the _FSCS_ with the aggregated amount of _eligible deposits_ of every _depositor_.

11.4

Upon receipt of a request by the _FSCS_ , a _firm_ must provide the information in 11.3 to the _FSCS_.

11.5

A _firm_ must be able to provide the _FSCS_ with all information necessary to enable the _FSCS_ to prepare for the payment of compensation in accordance with this Part.

11.6

Upon receipt of a request by the _FSCS_ , a _firm_ must provide the information in 11.5 so as to enable the _FSCS_ to prepare for and pay compensation in accordance with this Part.

11.7

A _firm_ must take reasonable steps to ensure the accuracy of the data it holds to satisfy the requirements of this Chapter.

11.8

The information required by 11.1 and 11.2 must be electronically stored.

12

Single Customer View Requirements

12.A1

[Deleted.]

12.A2

[Deleted.]

12.1

A _firm_ must provide to the _FSCS_ all _single customer views_ and _exclusions views_ within 24 hours of the relevant _deposits_ becoming _unavailable deposits_.

12.2

A _firm_ must provide all _single customer views_ and _exclusions views_ to the _PRA_ or _FSCS_ within 24 hours of a request by the _PRA_ or _FSCS_.

12.3

If a _firm_ does not have any accounts or balances which are required to be included within an _exclusions view_, the _firm_ must provide confirmation of this to the _FSCS_.

12.4

A _firm_ must provide the information required by 12.1 and 12.2 by secure electronic transmission and in a format which is readily transferable to and compatible with the _FSCS's_ systems.

12.5

A _firm_ must provide the _FSCS_ with _single customer views_ and _exclusions views_ within three _months_ of receiving a _Part 4A permission_ to _accept deposits_.

12.6

The _FSCS_ must, within six _months_ of receiving the information required by 12.2 or 12.5, advise the _PRA_ whether the information provided by a _firm's_ _SCV system_ is capable of being submitted to the _FSCS_ and whether it is compatible with the _FSCS's_ systems to enable it to pay compensation within the time limits contained in 9.2.

12.7

A _firm_ must ensure that its _SCV system_ :

1. (1) automatically identifies the amount of _covered deposits_ payable to each _depositor_ ; and
2. (2) includes a facility which identifies any portion of an _eligible deposit_ that is over the coverage level provided for in 4.2.

12.8

A _firm_ must take reasonable steps to ensure the accuracy of the data it holds in order to satisfy the requirements of this Chapter.

12.9

A _firm_ must ensure that each _single customer view_ and _exclusions view_ contains all the information set out in the table below.

| Field identifier | Field descriptor | Notes

---|---|---|---

| Customer details

- 1 | _Single customer view_ record number | Unique customer identifier. | Maximum number of characters in field: 200
- 2 | Title | Title [if applicable and where held by the _firm_]. | Maximum number of characters in field: 20
- 3 | Customer first forename | First forename [if applicable]. | Maximum number of characters in field: 50
- 4 | Customer second forename | Second forename [if applicable and where held by the _firm_]. | Maximum number of characters in field: 50
- 5 | Customer third forename | Third forename [if applicable and where held by the _firm_]. | Maximum number of characters in field: 50
- 6 | Customer Surname [or company name or name of account holder] | Surname [or company name or name of account

holder]. | Maximum number of characters in field: 100

7 | Previous Name | Any former name of the account holder [where held by the _firm_]. | Maximum number of characters in field: 200

8 | National Insurance number | National Insurance number [if applicable and where held by the _firm_]. | Maximum number of characters in field: 9

9 | Passport number | Passport number [if applicable and where held by the _firm_]. | Maximum number of characters in field: 200

10 | Other national identifier | The type of national identifier being provided [if applicable and where held by the _firm_]. | Maximum number of characters in field: 50

11 | Other national identity number | The national identity number [if applicable and where held by the _firm_]. | Maximum number of characters in field: 50

12 | Company number | Company registration number or other business registration number [if applicable]. | Maximum number of characters in field: 50

13 | Customer date of birth | Date of birth [if applicable and where held by the firm]. | DDMMYYYY

Maximum number of characters in field: 8

| Contact details

14 | _Single customer view_ record number | Unique customer identifier. | Maximum number of characters in field: 200

15 | Address line 1 | First line of address. | Maximum number of characters in field: 100

16 | Address line 2 | Second line of address. | Maximum number of characters in field: 100

17 | Address line 3 | Third line of address [if applicable]. | Maximum number of characters in field: 100

18 | Address line 4 | Fourth line of address [if applicable]. | Maximum number of characters in field: 100

19 | Address line 5 | Fifth line of address [if applicable]. | Maximum number of characters in field: 100

20 | Address line 6 | Sixth line of address [if applicable]. | Maximum number of characters in field: 100

21 | Postcode | Postcode [except where not used by a country]. | Maximum number of characters in field: 30

22 | Country | Country [for countries outside the _UK_]. | Maximum number of characters in field: 30

23 | Email address | Email address [where held by the _firm_]. | Maximum number of characters in field: 50

24 | Main phone number | Daytime phone or main phone number [where held by the _firm_]. | Numeric

Maximum number of characters in field: 40

25 | Evening phone number | Phone number 2 [where held by the _firm_]. | Numeric

Maximum number of characters in field: 40

26 | Mobile phone number | Phone number 3 [where held by the _firm_]. | Numeric

Maximum number of characters in field: 30

| Details of accounts(s)

27 | _Single customer view_ record number | Unique customer identifier. | Maximum number of characters in field: 200

28 | Account title | Surname, first name, any other initials or middle name identifier or company name or name of account holder. | Maximum number of characters in field: 50

29 | Account number | Unique number for this account. | Maximum number of characters in field: 35

30 | BIC | Business Identifier Code for the customer [if applicable and where held by the _firm_]. | ISO 9362 or alternative code if ISO 9362 is unavailable

Maximum number of characters in field: 11

31 | IBAN | International Bank Account Number [if applicable]. | ISO 13616 or alternative code if ISO 13616 is unavailable

Maximum number of characters in field: 34

32 | Sort code | If applicable. | Numeric

Maximum number of characters in field: 6

33 | Product type | `_Firms_` must allocate products to one of the following categories:

- * Instant Access Accounts (including current accounts);
- * Individual Savings Accounts (ISAs);
- * notice accounts;
- * fixed term `_deposits_` with a term of less than one year;
- * fixed term `_deposits_` with a term of one year or more but less than two years;
- * fixed term `_deposits_` with a term of two years or more but less than four years;
- * fixed term `_deposits_` with a term of four years or more;
- * other.

| Values:

- * IAA
- * ISA
- * NA
- * FD1
- * FD2
- * FD4
- * FP4P
- * Other

Maximum number of characters in field: 5

34 | Product name | The name of the product held. | Maximum number of characters in field: 50

35 | Account holder indicator | This field applies to joint or multiple accounts. It must identify how many account holders there are in relation to the account. | If the account has one account holder, the ?Account Holder Indicator = 001?. If the account has two owners, the ?Account Holder Indicator = 002? for both account holders.

Maximum number of characters in field: 3

36 | Account status code | If applicable, this field should set out any flags that the `_firm_` has against an account, including (but not limited to):

- * whether the `_depositor_` has any special communication requirements (e.g., Braille)

| Maximum number of characters in field: 50

37 | Exclusion type | If applicable, where the file is an `_exclusions view_`, an indication of why the account falls within an `_exclusions view_`. Identify all of the following which apply:

1. a) The `_depositor_` is not absolutely entitled to the sums held in the account or the account comprises `_safeguarded funds_`;
2. b) The account is a `_dormant account_`;
3. c) The account is an account for which the `_firm_` has received formal notice of a legal dispute or competing claims to the proceeds of the account;
4. d) The account appears on the ?Consolidated list of financial sanctions targets in the United Kingdom? that is maintained by HM Treasury or is otherwise subject to restrictive measures imposed by national governments or

international bodies.

| Values: a) BEN

b) LEGDOR

c) LEGDIS

d) HMTS

Maximum number of characters in field: 6

38 | Recent transactions. | Has there been any transaction relating to the _deposit_ within the 24 months prior to production of the _single customer view_ or _exclusions view_ , as applicable? | Values: Yes / No

Maximum number of characters in field: 3

39 | Account branch jurisdiction. | _Eligible deposits_ must be held by _UK_ or Gibraltar establishments. State ?GBR? or ?GIB?, as applicable. | N/A

40 | Bank recovery and resolution marking | Is the account marked under 13.2? [if applicable]. | Value: Yes / No

Maximum number of characters in field: 3

41 | Structured deposit accounts | State whether or not the account is a structured deposit account where the account balance is calculated in accordance with 12.11. | Value: Yes / No

Maximum number of characters in field: 3

42 | Account balance in sterling | Account balance including any interest, at end of business on:

* the date on which the _deposit_ becomes an _unavailable deposit_ ;

or

* the date of request from _FSCS_ or _PRA_ as applicable.

Where there is a negative balance, the amount should be preceded by a minus symbol (?-?). | Do not include any non-numeric symbols such as commas, currency symbols (e.g., £).

All balances must be rounded up to two decimal places.

Maximum number of characters in field: 15

43 | Authorised negative balances | The maximum negative balance on the account authorised by the _firm_ , in sterling. | Do not include any non-numeric symbols such as commas, currency symbols (e.g. £).

All figures must be rounded up to two decimal places.

If the account does not accept negative balances please insert 0.00.

If the maximum negative balance authorised is e.g. £50, please insert 50.00, not -50.00.

Maximum number of characters in field: 15

44 | Currency of account | Currency in which the account is held. | ISO 4217 or alternative code if ISO 4217 is unavailable

Maximum number of characters in field: 3

45 | Account balance in original currency | The original balance in the original currency, including any interest at the end of business before conversion to sterling [if applicable].

Where there is a negative balance, the amount should be preceded by a minus symbol (?-?). | Do not include any non-numeric symbols such as commas, currency symbols (e.g., £). All balances must be rounded up to two decimal

places.

Maximum number of characters in field: 15

46 | Exchange rate | The exchange rate used to calculate the sterling balance, and the date on which the calculation was undertaken [if applicable]. | Do not include any non-numeric symbols such as commas, currency symbols (e.g., £). All balances must be rounded up to nine decimal places.

Maximum number of characters in field: 29

47 | Original account balance before interest | Account balance in original currency before interest accrued applied.

Where there is a negative balance, the amount should be preceded by a minus symbol (?-?). | Do not include any non-numeric symbols such as commas, currency symbols (e.g., £). All balances must be rounded up to two decimal places.

Maximum number of characters in field: 15

48 | Field 48 | [Deleted.]

| This is a legacy field retained as a placeholder.

| Aggregate balance

49 | _Single customer view_ record number | Unique customer identifier. | Maximum number of characters in field: 200

50 | Aggregate balance in sterling | Aggregate balance across all accounts which contain a positive balance at end of business on:

* the date the _deposit_ becomes an _unavailable deposit_ ;

or

* the date of request from _FSCS_ or _PRA_ as applicable.

Where an account contains a negative balance, that balance should be excluded from the calculation of the aggregate balance. | Do not include any non-numeric symbols such as commas, currency symbols (e.g., £). All balances must be rounded up to two decimal places.

Maximum number of characters in field: 15

51 | Compensatable amount in sterling | The amount to be compensated subject to the limit check that must be performed by the _firm_ pursuant to 12.7(2)) (this could be lower than the aggregate balance across all accounts if this exceeds the coverage level provided for in 4.2).

For beneficiary accounts, it may not be possible to calculate this amount and this field may be left blank. | Do not include any non-numeric symbols such as commas, currency symbols (e.g., £). All balances must be rounded up to two decimal places.

Maximum number of characters in field: 15

12.10

Where a _firm_ prepares both a _single customer view_ and an _exclusions view_ for a _depositor_ , the ?unique customer identifier? on both the _single customer view_ and the _exclusions view_ must be identical.

12.11

Where the account is a structured deposit account where the return cannot be calculated until the maturity date because the return is based on growth of an index as determined at a future date, the figure in the account balance (Field 42) must be the total of the principal, any attributable contractual minimum return and any interest accrued prior to the product start date.

12.12

Where a _depositor_ holds more than one account, the section of the _single customer view_ and _exclusions view_ which sets out ?Details of account(s)? must be completed for each account held.

12.13

The amount inserted into each _single customer view_ and _exclusions view_ as the account balance (Field 42) and aggregate balance across all accounts (Field 50) must be the total of principal plus any interest or premium attributable up to the _compensation date_ (or the date on which the _PRA_ or _FSCS_ requests the _firm_ to provide the _single customer view_ and _exclusions view_ in accordance with 12.2).

12.14

A _firm_ must ensure that the amount inserted into each _single customer view_ and _exclusions view_ as the account balance (Field 42), original account balance before interest (Field 47) and aggregate balance across all accounts (Field 50) includes any payment made to the _depositor_ for which value has been credited to the _depositor?s_ account regardless of whether the _firm_ has received the value itself. A _firm_ must ensure that the amount inserted into each _single customer view_ and _exclusions view_ as the account balance (Field 42), original account balance before interest (Field 47) and aggregate balance across all accounts (Field 50) excludes any payment sent by the _depositor_ which has been debited from the _depositor?s_ account regardless of whether the _firm_ has sent value itself.

12.15

At the end of the file containing the _single customer view_ and _exclusions view_ for all _depositors_ , the _firm_ must include a file footer indicating that the file is complete. The file footer must contain the figure ?9" repeated 20 times. The file footer must appear at the end of the complete file containing the _single customer view_ or _exclusions view_ for all _depositors_ after the last record.

13

Bank Recovery and Resolution Marking

13.A1

[Deleted.]

13.A2

[Deleted.]

13.1

This Chapter does not apply to the _FSCS_ , _credit unions_ or _Northern Ireland credit unions_.

13.2

A _firm_ must mark accounts which hold:

1. (1) _eligible deposits_ from natural persons and _micro, small and medium-sized enterprises_ ; and
2. (2) deposits that would be _eligible deposits_ from natural persons or _micro, small and medium-sized enterprises_ if the _deposit_ had not been made through a _branch_ of the _firm_ located outside the _UK_ or Gibraltar,

in a way that allows for the immediate identification of such accounts.

13.3

A _firm_ must, at least annually, take reasonable steps to confirm that a _depositor_ that it has classified as a _micro, small and medium-sized enterprise_ continues to be a _micro, small and medium-sized enterprise_ using the exchange rate prevailing on the 3 July immediately preceding the date on which any confirmation is undertaken.

13.4

[Deleted.]

13.5

[Deleted.]

13.6

[Deleted.]

13.7

[Deleted.]

13.8

[Deleted.]

13.9

A _firm_ must take reasonable steps to ensure the accuracy of the data it holds in order to satisfy the requirements of this Chapter.

13.10

The information required by 13.2 must be electronically stored.

14

Single Customer View and Exclusions View Reporting

14.1

This Chapter does not apply to the _FSCS_.

14.2

A _firm_ must provide the _PRA_ and _FSCS_ with an _SCV effectiveness report_ within three _months_ of receiving a _Part 4A permission_ to _accept deposits_.

14.3

A _firm_ must notify the PRA and FSCS of a material change in the _firm?s_ _SCV system_ within 3 months of the change.

14.4

The notification in 14.3 must be accompanied by a statement signed on behalf of the _firm?s_ _governing body_ confirming that the _firm?s_ _SCV system_ satisfies the _SCV requirements_.

14.5

A _firm_ must provide an _SCV effectiveness report_ to the _PRA_ or _FSCS_ promptly upon request by the _PRA_ or _FSCS_.

14.6

A _firm_ must update its _SCV effectiveness report_ annually.

14.7

A description of a _firm?s_ _SCV system_ and how it has been implemented must include an explanation of any code or keys used internally by the _firm_ so that the _FSCS_ can easily identify:

1. (1) _eligible deposits_ and accounts which are held on behalf of beneficiaries and which contain or may contain _eligible deposits_ ; and
2. (2) the accounts referred to in 13.2.

14.8

A firm?s _SCV effectiveness report_ must contain:

1. (1) a description of:

1. (a) the __firm?s_ _SCV system_ and how it has been implemented;
 2. (b) how the _firm_ proposes to transfer to the _FSCS_ _single customer views_ including specifying the transfer method and format;
 3. (c) the testing undertaken with respect to the robustness of the __firm?s_ _SCV system_ (including information on preparation of the _single customer view_ in stressed scenarios, frequency of testing and reconciliation with core systems);
 4. (d) the number of _single customer views_ and _exclusions views_ in the __firm?s_ _SCV system_ ;
 5. (e) the __firm?s_ plan for the ongoing maintenance of the __firm?s_ _SCV system_ ;
 6. (f) how the __firm?s_ governing body_ will ensure that they remain satisfied that the __firm?s_ _SCV system_ continues to satisfy the _SCV requirements_ ;
 7. (g) how the facility required by 12.7(2) is applied;
 8. (h) any other factors relevant to the design of the __firm?s_ _SCV system_ or to an assessment of whether the __firm?s_ _SCV system_ satisfies the _PRA?s_ _SCV requirements_ ;
 9. (i) any dependencies in creating _single customer views_ and _exclusions views_ (such as reliance on group systems);
 10. (j) treatment of accounts which are _dormant accounts_ ;
 11. (k) how _exclusions views_ are created; and
 12. (l) a description of the procedures and controls that a __firm__ has in place regarding the production of _single customer views_ and _exclusions views_ (such as secure storage and an indication of how key person dependencies are managed).
2. (2) a statement signed on behalf of the __firm?s_ governing body_ confirming that the __firm?s_ _SCV system_ satisfies the _SCV requirements_ ;
 3. (3) the date when the __firm?s_ _SCV system_ last produced a _single customer view_ and _exclusions view_ for each _depositor_ ;
 4. (4) a statement of whether the __firm?s_ _SCV effectiveness report_ has been reviewed by external auditors, and if so a statement of the findings of that review; and
 5. (5) a statement of whether there has been a material change to the __firm?s_ _SCV system_ since the date of the

__firm?s_ previous _SCV effectiveness report_.

15

Marking Reporting

15.1

This Chapter does not apply to the _FSCS_.

15.2

A _firm_ must provide the _PRA_ with a report on its systems to comply with 11.1 and 11.2 within three _months_ of receiving a _Part 4A permission_ to _accept deposits_.

15.3

A _firm_ must notify the _PRA_ and _FSCS_ of a material change in the _firm?s_ systems to comply with 11.1 and 11.2 within 3 _months_ of the change.

15.4

The notification in 15.3 must be accompanied by a statement signed on behalf of the _firm?s_ governing body_ confirming that the _firm?s_ systems comply with 11.1 and 11.2 and satisfy the requirements in 11.8.

15.5

A _firm_ must provide the report to the _PRA_ promptly upon request by the _PRA_.

15.6

A _firm_ must update the report annually.

15.7

The report that a _firm_ provides under 15.2 must contain:

1. (1) a description of:

1. (a) the _firm?s_ systems to comply with 11.1 and 11.2 and how those systems have been implemented;
2. (b) the testing undertaken with respect to its systems to comply with 11.1 and 11.2;
3. (c) the _firm?s_ plan for the ongoing maintenance of its systems to comply with 11.1 and 11.2;
4. (d) how the _firm?s_ __governing body_ will ensure that they remain satisfied that its systems comply with 11.1 and 11.2;
5. (e) any other factors relevant to the design of its systems to comply with 11.1 and 11.2;
6. (f) any dependencies in operating its systems to comply with 11.1 and 11.2 (such as reliance on group systems);

2. (2) a statement signed on behalf of the _firm?s_ __governing body_ confirming that the _firm?s_ systems comply with 11.1 and 11.2;

3. (3) a statement of whether the _firm?s_ systems to comply with 11.1 and 11.2 have been reviewed by internal or external auditors, and, if so, a statement of the findings of that review; and

4. (4) a statement of whether there has been a material change to the _firm?s_ systems to comply with 11.1 and 11.2 since the date of the _firm?s_ previous report.

16

Firms? Disclosure Obligations - Information and Exclusions

16.A1

[Deleted.]

16.1

This Chapter does not apply to the _FSCS_.

16.2

A _firm_ must:

1. (1) prepare an ? _information sheet_ ? and prepare an _exclusions list_ ;
2. (2) ensure that the _information sheet_ is kept up-to-date;
3. (3) before entering into a contract on _deposit_ -taking with the intending _depositor_ of _deposits_ to be held by a _UK_ or Gibraltar establishment of the _firm_ :
 1. (a) provide the _exclusions list_ to;
 2. (b) provide the _information sheet_ to; and
 3. (c) obtain an acknowledgement of receipt of the _information sheet_ from,
 4. each such intending _depositor_.
 5. (4) [deleted]

16.2A

[Deleted.]

16.3

The information sheet must be in English, or, if different, in the language that was agreed between the _depositor_ and the _firm_ when the account was opened.

17

Firms? Disclosure Obligations - Statements of Account

17.A1

[Deleted.]

17.1

A _firm_ must:

1. (1) confirm that _deposits_ are _eligible deposits_ (if that is the case) on a _depositor?s_ statements of account;
2. (2) include a reference to the _information sheet_ and a reference to the _exclusions list_ on a _depositor?s_ statement of account in respect of _deposits_ held by a _UK_ or Gibraltar establishment of the _firm_ ;
3. (3) at least annually:
 1. (a) provide to the _depositor_ of _eligible deposits_ held by a _UK_ or Gibraltar establishment of the _firm_ ;
 1. (i) the _information sheet_ ; and
 2. (ii) the _exclusions list_ ;

2. (b) [Deleted.]

4. (4) include the following information on a _depositor's_ statement of account in respect of _deposits_ held by a _UK_ or Gibraltar establishment of the _firm_ :

For further information about the compensation provided by the FSCS, refer to the FSCS website at www.FSCS.org.uk.

17.2

If the _depositor_ receives statements of account, the information set out in 17.1(3) must be provided in or with such a statement.

17.3

[Deleted.]

18

References to the Deposit Guarantee Scheme in Advertising

18.A1

[Deleted.]

18.1

A _firm_ must not, in advertising materials, provide any further information about the _deposit guarantee scheme_ beyond referring to the fact that the product advertised is or is not covered by the _deposit guarantee scheme_ , and to any further factual information required by law including by this Part.

19

Disclosure of Transfer of Deposits

19.1

In the case of a merger, conversion of _subsidiaries_ into _branches_ , transfer or similar operations, a _firm_ must:

1. (1) inform _depositors_ at least one _month_ before the operation takes legal effect, save where the _PRA_ allows a shorter deadline on grounds of commercial secrecy or financial stability; and
2. (2) where a consequence of the operation will be a reduction in the aggregate amount of a _depositor's_ coverage compared with what would have been the case if the operation had not occurred, give _depositors_ a three _month_ period following notification in accordance with (1), to withdraw or transfer to another _institution_ , without incurring any penalty, such part of their _eligible deposits_ , together with any accrued interest and other benefits, as exceed the coverage level pursuant to 4.2 at the time of the operation.

20

Disclosure of Withdrawal or Exclusion from the Deposit Guarantee Scheme

20.1

A _firm_ must inform _depositors_ within one month if it withdraws from or is excluded from the _deposit guarantee scheme_.

20.2

A _Gibraltar-based credit institution_ with an establishment in the _UK_ must inform _depositors_ of that establishment within one month if it withdraws from or is excluded from the _Gibraltar DGS_.

20.3

[Deleted.]

20.4

An _overseas firm_ must as soon as practically possible provide the information in (1) and (2) to _depositors_ if _deposits_ it holds will, within twelve _months_ , cease to be _eligible deposits_ by virtue of such _deposits_ no longer being held at a _UK_ establishment of the _overseas firm_ :

1. (1) the date on which it is anticipated that _deposits_ will cease to be _eligible deposits_ ;
2. (2) details of any compensation scheme that may cover the _deposits_ in whole or in part from that date.

21

Method of Communication

21.1

A _firm_ may discharge all its information-providing obligations in this Part:

1. (1) to _depositors_ who use internet banking facilities, by way of electronic communications;
2. (2) to _depositors_ who receive only paper statements, in writing in paper form; and
3. (3) to _depositors_ who neither receive paper statements nor use internet banking, in a way that brings it to the attention of the _depositor_ ,

but it must provide the information on paper if so requested by the _depositor_.

22

Notification Requirements on Transfer to a Non-UK Scheme (Deleted)

22.1

[Deleted.]

23

Deposit Compensation Information ? Branches, Websites and Other Electronic Communications

23.A1

[Deleted.]

23.1

This Chapter does not apply to the _FSCS_.

23.2

In this Chapter, references to "compensation sticker", "compensation poster", "general FSCS compensation sticker" and "general FSCS compensation poster" are references to those documents in the form set out in Annex 2 to this Part.

23.3

In this Chapter, references to "compensation leaflet" are:

1. (1) in the case of a _DGS member_ , references to the _FSCS's_ standard leaflet with respect to its protection of _deposits_ ; and
2. (2) in the case of a _Gibraltar-based credit institution_ with an establishment in the _UK_ , references to a leaflet with respect to the protection of _deposits_ by the _Gibraltar DGS_ where such a leaflet is provided electronically and in English by the _Gibraltar DGS_ or, where a leaflet is not available, a link to the _Gibraltar DGS' _website.

23.3A

A firm must ensure the appropriate FSCS information is prominently displayed in all the appropriate places at each:

1. (1) UK branch (see 23.3B);
2. (2) Gibraltar branch (in the case of a UK firm with a branch in Gibraltar) (see 23.3B); and
3. (3) third-party premises:
 1. (a) which is used by more than one firm;
 2. (b) where face-to-face services are available; and
 3. (c) at which a depositor may, in person (and not merely by electronic or mechanical means):
 1. (i) make deposits to, and withdrawals from, an account held with the firm; or
 2. (ii) carry out other transactions with the firm,
4. (see 23.3C).
4. (4) The requirements in 23.3A(1) and (2) do not apply to a branch where depositors do not physically attend to:
 1. (a) make deposits to, and withdrawals from, an account held with the firm; or
 2. (b) carry out other transactions with the firm.

23.3B

At a UK branch or a Gibraltar branch, these are:

1. (1) in the window of the premises:
 1. (a) if the firm accepts deposits under a single brand or trading name: the compensation sticker or compensation poster;
 2. (b) if the firm accepts deposits under multiple brands or trading names: the compensation sticker;
2. (2) inside the premises: the compensation poster; and
3. (3) at each cashier window or desk: the compensation sticker.

23.3C

At third-party premises, these are:

1. (1) in the window of the premises: the general FSCS compensation poster or the general FSCS compensation sticker;
2. (2) inside the premises: the general FSCS compensation sticker;
3. (3) at each cashier window or desk: the general FSCS compensation sticker.

23.3D

If it is not possible to comply with a requirement in 23.3B or 23.3C due to the physical design of the relevant premises, the firm must ensure that the appropriate FSCS information is displayed in an alternative place of equivalent prominence at that premises.

23.4

[Deleted]

23.5

[Deleted]

23.6

Where the physical design of the _branch_ means that it is not possible to comply with any of the requirements of 23.4 and 23.5, a _firm_ must display the compensation sticker or the compensation poster in an alternative place in the _branch_ that has equal prominence.

23.7

A _firm_ that _accepts deposits_ under a single brand or trading name must, in a way that best brings the information to depositors' attention:

1. (1) display prominently (in electronic form) the compensation sticker; and
2. (2) provide from the compensation sticker an electronic link to the compensation leaflet.

23.8

A _firm_ that _accepts deposits_ under multiple brands or trading names must, in a way that best brings the information to _depositors'_ attention:

1. (1) display prominently (in electronic form) the compensation poster; and
2. (2) provide from the compensation poster an electronic link to the compensation leaflet.

23.9

A _firm_ must immediately provide the compensation leaflet to any _person_ that requests further information about deposit protection.

23.10

[Deleted.]

24

Duties of the FSCS

24.1

This Chapter applies to the _FSCS_.

24.2

The _FSCS_ must administer the _deposit guarantee scheme_ :

1. (1) in accordance with the rules in this Part and any other rules prescribed by law;

2. (2) in a manner that is procedurally fair; and
3. (3) in accordance with the _European Convention on Human Rights_.

24.3

The _FSCS_ must publish for _depositors_ on its website all necessary information:

1. (1) on the operation of the _deposit guarantee scheme_ ; and
2. (2) on the process, eligibility, exclusions from protection and conditions for payment of compensation,

including all information specified in the _information sheet_ as being available on its website.

24.4

The _FSCS_ may agree to pay the reasonable costs of a _depositor_ bringing or continuing insolvency proceedings against a _DGS member_ in respect of _eligible deposits_ (whenever instituted), if the _FSCS_ is satisfied that those proceedings would help it to discharge its functions under this Part.

24.5

The _FSCS_ must have regard to the need to use its resources in an efficient and economic way in carrying out its functions under this Part.

24.6

The _FSCS_ must perform stress tests of its systems relating to the payment of compensation in respect of _eligible deposits_ at least once every three years and more frequently where the _FSCS_ considers it necessary, with the first such stress test taking place by 3 July 2017.

24.7

The _FSCS_ shall use the information necessary to perform stress tests of its systems relating to the payment of compensation in respect of _eligible deposits_ only for the performance of those tests and shall keep such information no longer than is necessary for that purpose.

24.8

The _FSCS_ must take appropriate steps to ensure that _depositors_ are informed of the process for receiving compensation as soon as a possible after the _compensation date_.

24.9

The _FSCS_ must inform the _PRA_ immediately if it becomes aware of any instance of a _firm_ not complying with its obligations as set out in this Part.

24.10

The _FSCS_ must correspond with a _depositor_ in any one of:

1. (1) English; or
2. (2) Welsh if that language is used by the _firm_ which holds the _eligible deposit_ when communicating with that _depositor_.

24.11

The _FSCS_ must have in place sound and transparent governance practices.

25

Claims Against the FSCS and Challenging FSCS Decisions

25.1

The _FSCS_ must ensure that a _person_ who would be, or considers that they would be, affected by an _FSCS_ decision in relation to compensation, has an opportunity to make representations in respect of that potential decision before it is finalised.

25.2

The _FSCS_ may provide that _depositors_ may only submit claims for compensation in respect of _deposits_ within a specified period of time (not less than three months) from the expiry of the applicable time period for payment of compensation as specified in 9.2 or the decision of the _FSCS_ under 9.3 or 9.4.

25.3

The _FSCS_ must, if requested by the _depositor_ and subject to other applicable laws, give reasons to the _depositor_ for any decision not to pay compensation in relation to some or all of their _deposits_.

25.4

The procedure established by the _FSCS_ under this Chapter must satisfy the minimum requirements of procedural fairness and comply with the _European Convention on Human Rights_ for the handling of any complaints of maladministration relating to any aspect of the operation of the _deposit guarantee scheme_.

26

Confidentiality

26.1

The _FSCS_ must ensure the confidentiality and the protection of the data pertaining to _depositors'_ accounts. The processing of such data must be carried out in accordance with the Data Protection Act 2018 and the _GDPR_.

26.2

[Deleted.]

26.3

[Deleted.]

26.4

[Deleted.]

27

Payments in Respect of UK Branches of Incoming Firms and EEA Branches of DGS Members (Deleted)

27.1

[Deleted.]

27.2

[Deleted.]

27.3

[Deleted.]

28

Subrogation

28.1

This Chapter applies to the _FSCS_.

28.2

The _FSCS_ may determine that the payment of compensation by the _FSCS_ shall have all or any of the following effects:

1. (1) the _FSCS_ shall immediately and automatically be subrogated, subject to such conditions as the _FSCS_ determines are appropriate, to all or any part (as determined by the _FSCS_) of the rights and claims in the _UK_ and elsewhere of the _compensation recipient_ against the _DGS member_ and/or any third party (whether such rights are legal, equitable or of any other nature whatsoever and in whatever capacity the _DGS member_ or third party is acting) in respect of or arising out of the _compensation recipient's_ _deposits_ being _unavailable_;
2. (2) the _FSCS_ may claim and take legal or any other proceedings or steps in the _United Kingdom_ or elsewhere to enforce such rights in its own name or in the name of, and on behalf of, the _compensation recipient_ or in both names against the _relevant credit institution_ and/or any third party;
3. (3) the subrogated rights and claims conferred on the _FSCS_ shall be rights of recovery and claims against the _relevant credit institution_ and/or any third party which are equivalent (including as to amount and priority and whether or not the relevant _DGS member_ is insolvent) to and not exceed the rights and claims that the _compensation recipient_ would have had; and/or
4. (4) such rights and/or obligations (as determined by the _FSCS_) as between the _firm_ and the _compensation recipient_ arising out of the _compensation recipient's_ _deposit_ being unavailable, shall be transferred to, and subsist between, another _firm_ and the _compensation recipient_ provided that the _firm_ has consented (but the transferred rights and/or obligations shall be treated as existing between the _firm_ and the _FSCS_ to the extent of any subrogation, transfer or assignment for the purposes of (1) to (3) and 28.3).

28.2A

Payment of compensation by the _FSCS_ in accordance with 6.2(6)(a) or (b) shall have the immediate effect that B (as defined in 6.2(6)(a)) may not enforce any claims B has against the _depositor_ to the value of the compensation paid to B or paid as directed in accordance with 6.2(6)(b).

28.2B

Any claim of B against the _depositor_ that is suspended in accordance with 28.2A is only deemed to have been paid for the purposes of regulation 24(1)(b) of the _Electronic Money Regulations_ or regulation 23(14)(b) of the _Payment Services Regulations_ when (and to the extent) the _FSCS_ (or the _depositor_ where the _FSCS_ assigns rights back to the _depositor_ in accordance with 29.2) has made recoveries from the _credit institution_ or any third party in respect of the _eligible deposit_.

28.3

1. (1) The _FSCS_ may determine that, if it is necessary or desirable in conjunction with the exercise of the _FSCS's_ powers under 28.2, that the _compensation recipient_ shall be treated as having irrevocably and unconditionally appointed the chairman of the _FSCS_ for the time being to be their attorney and agent and on their behalf and in their name or otherwise to do such things and execute such deeds and documents as may be required under such laws of the _UK_ , Gibraltar or any other state or country to create or give effect to such assignment or transfer or otherwise give full effect to those powers.
2. (2) The execution of any deed or document under (1) shall be as effective as if made in writing by the compensation recipient or by his agent lawfully authorised in writing or by will.

28.4

1. (1) The powers conferred on the _FSCS_ in 28.2 and 28.3 to make a determination must be exercised in writing.
2. (2) An instrument by which the _FSCS_ makes a determination must specify the provision under which it is made, the date and the time from which it takes effect and the _DGS member_ and the _eligible deposits_ or classes of _eligible deposit_ in respect of which it applies.
3. (3) The _FSCS_ must take appropriate steps to publish the determination as soon as possible after it is made. Such publication must be accompanied by a statement explaining the effect of 28.2 and the _FSCS's_ determination.
4. (4) Failure to comply with any requirement under this rule does not affect the validity of the determination.
5. (5) A determination by the _FSCS_ under 28.2 may be amended, remade or revoked at any time and subject to the same conditions.

28.5

1. (1) The production of a copy of the determination purporting to be made by the _FSCS_ under this Chapter:
 1. (a) on which is endorsed a certificate, signed by a member of the _FSCS's_ staff authorised by it for that purpose; and
 2. (b) which contains the required statements;
2. is evidence (or in Scotland sufficient evidence) of the facts stated in the certificate.
3. (2) The required statements are:
 1. (a) that the determination was made by the _FSCS_ ; and
 2. (b) that the copy is a true copy of the determination.
4. (3) A certificate purporting to be signed as mentioned in (1) is to be taken to have been properly signed unless the contrary is shown.
5. (4) A _person_ who wishes in any legal proceedings to rely on a determination may require the _FSCS_ to endorse a copy of the determination with a certificate of the kind mentioned in (1).

28.6

Where 6.2(6) provides for the _FSCS_ to pay compensation to a _person_ other than the _depositor_ , references in 28 to the _compensation recipient_ are references to the _depositor_.

29

Duties on the FSCS to Pursue Recoveries

29.1

If the _FSCS_ takes a transfer of rights from the _compensation recipient_ or is otherwise subrogated to the rights of the _compensation recipient_ , it must pursue all and only such recoveries as it considers are likely to be both reasonably

possible and cost effective to pursue.

29.2

If the __FSCS_ decides not to pursue such recoveries and a _compensation recipient_ wishes to pursue those recoveries and so requests in writing, the _FSCS_ must comply with that request and assign the rights back to the _compensation recipient_.

29.3

Where 6.2(6) provides for the _FSCS_ to pay compensation to a _person_ other than the _depositor_, references in 29 to the _compensation recipient_ are references to the _depositor_.

30

Recoveries of Eligible Deposits: Return of Surplus to Compensation Recipient

30.1

If the _FSCS_, in relation to a _claim_ for _eligible deposits_, makes recoveries from the _credit institution_ or any third party in respect of that _eligible deposit_, it must:

1. (1) retain from those recoveries a sum equal to the aggregate of:
 1. (a) the sum paid by the _FSCS_ as compensation; and
 2. (b) [deleted.]
 3. (c) any amount the _FSCS_ determines is appropriate to cover all or part of its reasonable costs of recovery; and
2. (2) as soon as reasonably possible after it makes the recoveries:
 1. (a) where the _FSCS_ has paid compensation under 6.2(6)(a) or (b), pay any remaining sum to the _depositor_; and otherwise;
 2. (b) pay any remaining sum to the _compensation recipient_ or, if not the _depositor_, as directed by the _depositor_ or to any _person_ subrogated to the _claim_ of the _depositor_ against the _credit institution_ or to the rights of the _depositor_ under this Part or to any _person_ otherwise entitled to any remaining sum.

31

Funding - Available Financial Means

31.1

This Chapter applies only to the _FSCS_.

31.2

The _FSCS_ must have in place adequate systems to determine the potential liabilities of the _deposit guarantee scheme_ and ensure that the _available financial means_ of the _deposit guarantee scheme_ are proportionate to those liabilities.

31.3

The _FSCS_ must primarily use the _available financial means_ of the _deposit guarantee scheme_ to repay _depositors_ pursuant to the _deposit guarantee scheme_.

32

Funding - Use of Existing Mandatory Contributions

32.1

This Chapter applies only to the _FSCS_.

32.2

If the _PRA_ determines, in accordance with the _deposit guarantee scheme regulations_, that the _FSCS_ is unable to raise a _DGS compensation costs levy_ from _DGS members_ to meet the liabilities of the _deposit guarantee scheme_, the _FSCS_ may borrow an amount equal to the _mandatory contributions_ in order to meet the liabilities of the _deposit guarantee scheme_.

32.3

The _FSCS_ must impose a _DGS compensation costs levy_ on _DGS members_ sufficient to repay any amounts borrowed in accordance with 32.2 within a reasonable time and in accordance with repayment deadlines under the applicable loan agreement and 34.3.

33

Funding - FSCS's Power to Levy and Limits on Levies

33.1

This Chapter applies only to the _FSCS_.

33.2

The _FSCS_ may, at any time, impose on _DGS members_ a:

1. (1) _DGS compensation costs levy_ ; or
2. (2) _DGS management expenses levy_.
3. (3) [deleted]

33.2A

If the FSCS is required by the Bank of England to make a recapitalisation payment it may impose a recapitalisation payment levy on class A2.

33.3

The maximum aggregate amount for which the _FSCS_ can levy in any one financial year of the _deposit guarantee scheme_ in respect of:

1. (1) DGS compensation costs and DGS specific costs for which the FSCS can levy class A; and
2. (2) recapitalisation payments for which the FSCS can levy class A2,

is limited to £1,500,000,000.

33.4

The maximum amount of _DGS compensation costs_ for which the _FSCS_ can levy _DGS members_ per calendar year must not exceed 0.5% of total _covered deposits_ (excluding _temporary high balances_) of all _DGS members_. The _FSCS_ may in exceptional circumstances and with the prior consent of the _PRA_ impose higher levies.

34

Funding - DGS Compensation Costs Levy

34.1

This Chapter applies only to the _FSCS_.

34.2

The _FSCS_ must raise _available financial means_ by imposing a _DGS compensation costs levy_ on _DGS members_ at least once in each financial year for expenditure incurred or expected in the period of 12 months following 1 July in that year.

34.3

1. (1) If, after the _available financial means_ of the _deposit guarantee scheme_ have reached the _target level_ for the first time, the _available financial means_ have been reduced to less than two-thirds of the _target level_ , the _FSCS_ must impose regular _DGS compensation cost levies_ on _DGS members_ at a level allowing the _target level_ to be reached again within six years.
2. (2) The regular levies imposed under (1) shall take due account of the phase of the business cycle and the impact that procyclical contributions may have when setting annual contributions.

34.4

[Deleted]

34.5

[Deleted]

34.6

The _FSCS_ may only impose a _DGS compensation costs levy_ on _DGS members_ if the _FSCS_ has reasonable grounds for believing that the funds available to it to meet relevant expenses are, or will be, insufficient, taking into account expenditure already incurred, actual and expected recoveries and the level of the _FSCS?s_ expected expenditure in respect of _DGS compensation costs_ in the 12 _months_ immediately following the levy.

34.7

The _FSCS_ may include in a _DGS compensation costs levy_ the costs of compensation paid by the _FSCS_ in error, provided that the payout was not made in bad faith.

35

Funding - DGS Management Expenses Levy

35.1

This Chapter applies only to the _FSCS_.

35.2

The FSCS may only impose a _DGS management expenses levy_ on _DGS members_ if it has reasonable grounds for believing that the funds available to it to meet relevant expenses are, or will be, insufficient, taking into account

expenditure already incurred, actual and expected recoveries and the level of the _FSCS?s_ expected expenditure in respect of those expenses in the financial year of the _deposit guarantee scheme_ in relation to which the levy is imposed.

35.3

The _FSCS_ must apply any amount collected from a _DGS management expenses levy_ to the payment of _management expenses_ and, as such, must not treat such funds as available financial means of the _deposit guarantee scheme_ or available to meet recapitalisation payments.

36

Funding - Legacy Costs Levy [Deleted]

36.1

[Deleted]

36.2

[Deleted]

36.3

[Deleted]

36.4

[Deleted]

36.5

[Deleted]

36.6

[Deleted]

36.7

[Deleted]

36.8

[Deleted]

37

Funding - Management of Funds Levied

37.1

This Chapter applies only to the _FSCS_.

37.2

If the _FSCS_ invests any _available financial means_ of the _deposit guarantee scheme_ , it must invest it in a low-risk and sufficiently diversified manner.

37.3

The _FSCS_ must hold any amount collected from a _DGS specific costs levy_ or _DGS compensation costs levy_ to the credit of _class A_.

37.4

Interest earned by the _FSCS_ in the management of funds held to the credit of _class A_ must be credited to that _class_ , and must be set off against the _DGS management expenses_ and _DGS compensation costs_ allocated to that _class_.

37.5

The _FSCS_ must keep accounts which include:

1. (1) the funds held to the credit of _class A_ ; and
2. (2) the liabilities of _class A_.

37A

Funding - Management of Recoveries

37A.1

This Chapter applies only to the FSCS.

37A.2

Any recoveries made by the FSCS in relation to DGS compensation costs must be held to the credit of class A.

38

Funding - Adjustments to DGS Levy Shares

38.1

This Chapter applies only to the _FSCS_.

38.2

If a _DGS member?s_ share of a _DGS levy_ or an additional administrative fee or interest under 45.3 would be so small that, in the opinion of the _FSCS_ , the costs of collection would be disproportionate to the amount payable, the _FSCS_ may treat the _DGS member_ as if its share of the levy or additional administrative fee amounted to zero.

38.3

The calculation of _DGS levies_ must take into account previous levies, where funds raised in anticipation of meeting liabilities prove either more or less than the amount actually required.

38.4

The _FSCS_ may adjust the calculation of a _DGS member?s_ share of any _DGS levy_ to take proper account of:

1. (1) any excess, not already taken into account, between previous levies of that type imposed in relation to previous periods and the relevant costs actually incurred in that period; or
2. (2) amounts that the _FSCS_ has not been able to recover from _DGS members_ as a result of 33.3 or 33.4; or
3. (3) amounts that the _FSCS_ has not been able to recover from _DGS members_ after having taken reasonable steps; or
4. (4) payments deferred under 46.2, the calculation of levies after an assumption of liability under Chapter 39, calculations under 41.6; or
5. (5) anything else that the _FSCS_ believes on reasonable grounds should be taken into account.

38.5

The _FSCS_ must not adjust the calculation of a _DGS member's_ share of any _DGS levy_ under 38.4 on the grounds that it would be inequitable for that _firm_ to pay that share or part of it or on the grounds that it would be inequitable for the _FSCS_ to retain that share or part of it. Any such claim should be dealt with under Chapter 46.

39

Funding - Assumptions of Liability from DGS Members

39.1

This Chapter applies only to the _FSCS_.

39.2

If:

1. (1) a _DGS member_ (A) assumes a liability to repay _deposits_ held by another _DGS member_ (B);
2. (2) B is no longer liable to pay a _DGS levy_ to the _FSCS_ ; and
3. (3) the assumption of liability takes place after the date to which, or as of which, A's most recent _statement of business_ is drawn up,

the _FSCS_ must require A to pay an additional amount equal to the levy that would have been payable by B in relation to the relevant business and _class A_ (including an adjustment for the _FSCS's_ assessment of the degree of risk incurred by B) if the assumption of liability had not taken place and B had remained liable to pay _DGS levies_. The amount is based on the B's most recent _statement of business_.

39.3

This Chapter only applies with respect to those financial years of the _FSCS_ for which A's levies are calculated on the basis of a _statement of business_ drawn up to a date, or as of a date, before the assumption of liability took place.

40

Funding - Business Acquisitions from Non-DGS Members [Deleted]

40.1

[Deleted]

40.2

[Deleted]

40.3

[Deleted]

41

Funding - Management Expenses

41.1

A _DGS member?s_ share of a _DGS management expenses levy_ consists of one or more of: (1) a share of a _DGS base costs levy_ and (2) a share of a _DGS specific costs levy_.

41.2

The _FSCS_ must ensure that each _DGS member?s_ share of a _DGS management expenses levy_ separately identifies the _firm?s_ share of the _DGS base costs levy_ and _DGS specific costs levy_.

41.3

The _FSCS_ must allocate any _DGS specific costs levy_ to _class A_ up to the levy limit for _class A_ under 33.3.

41.4

The _FSCS_ must calculate a _DGS member?s_ share of a _DGS specific costs levy_ by:

1. (1) identifying _DGS specific costs_ which the _FSCS_ has incurred, or expects to incur, in the relevant financial year of the _deposit guarantee scheme_ allocated to _class A_ , but not yet levied;
2. (2) calculating the _DGS member?s_ __class A tariff base_ as a proportion of the total _class A tariff base_ , using the _statement of business_ most recently supplied; and
3. (3) applying the proportion calculated in (2) to the figure in (1).

41.5

The _FSCS_ must not require a _firm_ (A) which becomes a _DGS member_ part way through a financial year of the _deposit guarantee scheme_ to pay a share of a _DGS specific costs levy_ until the financial year of the _FSCS_ following the _FSCS_ financial year in which A became a _DGS member_ , at which time A?s share of a _DGS specific costs levy_ must be calculated under 41.6.

41.6

1. (1) Unless otherwise provided in (2), A?s _class A tariff base_ is calculated, where necessary, using a projected valuation of the business to which the tariff relates
2. (2)
 1. (a) If A?s _class A tariff base_ is calculated using data from a period that begins on or after it became a _DGS member_ , that data must be used to calculate A?s _class A tariff base_
 2. (b) If A?s _class A tariff base_ satisfies the following conditions, it must be calculated under (c)
 1. (i) A became a _DGS member_ between 1 April and 31 December inclusive; and
 2. (ii) A?s _class A tariff base_ , but for this rule, is calculated by reference to the financial year ended in the calendar year ending 31 December or the twelve _months_ ending 31 December before the _FSCS_ financial year.
 3. (c) If A satisfies the conditions in (b) it must calculate its _class A tariff base_ as follows:
 1. (i) it must use actual data in relation to the business to which the tariff relates rather than projected valuations;
 2. (ii) the tariff is calculated by reference to the period beginning on the date it became a _DGS member_ and ending on

the 31 December before the start of the _FSCS_ financial year; and

3. (iii) the figures are annualised by increasing them by the same proportion as the period of 12 _months_ bears to the period starting from when the _DGS member_ became a _DGS member_ to the 31 December, as the case may be.

4. (d) Where A is required to use the method in (c) it must notify the _FSCS_ of its intention to do so by the date specified in 44.2.

5. (e) Where A is required to use actual data under this rule, Chapter 43 is disapplied, to the extent it is incompatible, in relation to the calculation of that _DGS member?s_ valuation date in its second financial year.

42

Funding - DGS Compensation Costs Levy Share Calculation

42.1

This Chapter applies only to the _FSCS_.

42.2

The _FSCS_ must allocate any _DGS compensation costs levy_ to _DGS members_ in accordance with the amount of _DGS compensation costs_ arising from, or expected to arise from claims in respect of _covered deposits_ up to the levy limit of _class A_ under 33.3.

42.3

The _FSCS_ must calculate each _DGS member?s_ share of a _DGS compensation costs levy_ by:

1. (1) identifying the _DGS compensation costs_ allocated to _class A_ ;
2. (2) calculating, in relation to _class A_ , the _DGS member?s_ tariff base as a proportion of the total tariff base of all _DGS members_ in _class A_ , using the _statement of business_ most recently supplied;
3. (3) applying the proportion calculated in (2) to the figure in (1); and
4. (4) applying an adjustment for the degree of risk incurred by the _DGS member_ to the product of the calculation in (3).

42.4

When calculating a _DGS member?s_ share of a _DGS compensation costs levy_ or _DGS specific costs levy_ allocated to _class A_ , the _FSCS_ must use the _class A tariff base_.

42.5

A _firm_ which becomes a _DGS member_ part way through a financial year of the _deposit guarantee scheme_ will not be liable to pay a share of a _DGS compensation costs levy_ made in that year.

42.6

41.5 applies to the calculation of a _DGS member?s_ _DGS compensation costs levy_ and its tariff base as it applies to the calculation of its _specific costs levy_.

42A

Funding - Use of Existing Mandatory Contributions

42A.1

This Chapter applies only to the FSCS.

42A.2

If the PRA determines that the FSCS is unable to impose a recapitalisation payment levy on class A2 to make a recapitalisation payment as required, the FSCS may borrow an amount equal to the mandatory contributions in order to meet the requirements of the recapitalisation payment.

42A.3

The FSCS must impose a recapitalisation payment levy on class A2 sufficient to repay any amounts borrowed in accordance with 42A.2 within a reasonable time and in accordance with repayment deadlines under the applicable loan agreement.

42B

Funding - Recapitalisation Payment Levy Share Calculation

42B.1

This Chapter applies only to the FSCS.

42B.2

The FSCS must allocate any recapitalisation payment levy to class A2 members.

42B.3

The FSCS must calculate each class A2 member's share of a recapitalisation payment levy by:

1. (1) identifying the amount to be allocated to class A2;
2. (2) calculating, in relation to class A2, the class A2 member's tariff base as a proportion of the total tariff base of all class A2 members, using the statement of business most recently supplied;
3. (3) applying the proportion calculated in (2) to the figure in (1); and
4. (4) applying an adjustment for the degree of risk incurred by the class A2 member to the product of the calculation in (3).

42B.4

When calculating a class A2 member's share of a recapitalisation payment levy, the FSCS must use the class A tariff base.

42B.5

A firm which becomes a class A2 member part way through a financial year of the deposit guarantee scheme will not be liable to pay a share of a recapitalisation payment levy made in that year.

42C

Funding - Adjustment to Recapitalisation Payment Levy Shares

42C.1

This Chapter applies only to the FSCS.

42C.2

If a class A2 member's share of a recapitalisation payment levy or an additional administrative fee or interest under 45.3 would be so small that, in the opinion of the FSCS, the costs of collection would be disproportionate to the amount payable, the FSCS may treat the class A2 member as if its share of the recapitalisation payment levy or additional administrative fee amounted to zero.

42C.3

The calculation of a recapitalisation payment levy must take into account previous recapitalisation payment levies, where funds raised in anticipation of meeting liabilities prove either more or less than the amount actually required.

42C.4

The FSCS may adjust the calculation of a class A2 member's share of any recapitalisation payment levy to take proper account of:

1. (1) amounts that the FSCS has not been able to recover in relation to a recapitalisation payment levy from class A2 members after having taken reasonable steps; or
2. (2) payments deferred under 46.2A, the calculation of levies after an assumption of liability under Chapter 42F, calculations under 41.6; or
3. (3) anything else that the FSCS believes on reasonable grounds should be taken into account.

42C.5

The FSCS must not adjust the calculation of a class A2 member's share of any recapitalisation payment levy under 42C.4 on the grounds that it would be inequitable for that firm to pay that share or part of it or on the grounds that it would be inequitable for the FSCS to retain that share or part of it. Any such claim should be dealt with under Chapter 46.

42D

Funding - Management of Recapitalisation Payments Levied

42D.1

This Chapter applies only to the FSCS.

42D.2

The FSCS must hold any amount collected by way of a recapitalisation payment levy to the credit of class A2.

42D.3

Interest earned by the FSCS in the management of funds held to the credit of class A2 must be held to the credit of that class.

42D.4

The FSCS must keep accounts which include:

1. (1) the funds held to the credit of class A2; and
2. (2) the liabilities of class A2.

42E

Funding - Management of Recapitalisation Payments Levied

42E.1

This Chapter applies only to the FSCS.

42E.2

Any recoveries made by the FSCS in relation to a recapitalisation payment must be held to the credit of class A2.

42F

Funding - Assumption of Liability from Class A2 Members

42F.1

This Chapter applies only to the FSCS.

42F.2

If:

1. (1) a class A2 member (A) assumes a liability to repay deposits held by another class A2 member (B);
2. (2) B is no longer liable to pay a share of the recapitalisation payment levy to the FSCS; and
3. (3) the assumption of liability takes place after the date to which, or as of which, A's most recent statement of business is drawn up,

the FSCS must require A to pay an additional amount equal to the levy share that would have been payable by B in relation to the relevant business and class A2 (including an adjustment for the FSCS's assessment of the degree of risk incurred by B) as if the assumption of liability had not taken place and B had remained liable to pay a share of the recapitalisation payment levy. The FSCS must base this amount on B's most recent statement of business.

42F.3

This Chapter only applies with respect to those financial years of the FSCS for which A's levies are calculated on the basis of a statement of business drawn up to a date, or as of a date, before the assumption of liability took place.

43

Funding - Class A Tariff Base Calculation

43.1

The _Class A tariff base_ is:

1. (1) _covered deposits_ (excluding _temporary high balances_) as at 31 December except that, where the _covered deposit_ is a _dormant account_, the applicable tariff base is _covered deposit_ multiplied by 0.2 as at 31 December; and
2. (2) the total balance of any _deposits_ in any account which holds funds to which the account holder is not absolutely entitled or which are _safeguarded funds_ but may exclude the value of any funds which the _firm_ has confirmed are not _covered deposits_.

43.2

The _class A tariff base_ calculation must be made on the basis of the information that the _firm_ would have to include in its _single customer views_. The information must be of the extent and standard required if the _firm_ was preparing the _single customer view_ in accordance with the _SCV requirements_ as at the valuation date for the tariff base.

44

Funding - Reporting Requirements

44.1

This Chapter does not apply to the _FSCS_.

44.2

A _firm_ must provide the _FSCS_ by end of February each year (or, if it has become a _DGS member_ part way through the financial year, by the date requested by the _PRA_) with a statement of the total amount of business (measured in accordance with the _class A tariff base_) which it conducted, in respect of the most recent valuation period ending before the relevant year in relation to _class A_.

The relevant year means the year in which the month of February (referred to above) falls.

The valuation period will be 31 December.

44.3

A new _DGS member_ must calculate its _class A tariff base_ in accordance with 41.6.

44.4

If a _firm_ does not submit a complete _statement of business_ by the date on which it is due in accordance with 44.2 and any prescribed submission procedures:

1. (1) The _firm_ must pay an administrative fee of £250 (but not if it is already subject to an administrative fee by the _PRA_ for the same financial year); and
2. (2) The _DGS compensation costs levy_ , recapitalisation payment levy and any _DGS specific costs levy_ will be calculated using (where relevant) the valuation or valuations of business applicable to the previous period, multiplied by a factor of 1.10 (or if it has become a _DGS member_ part way through a financial year, on the basis of the information provided to the _PRA_ and used to calculate _PRA_ fees or on any other reasonable basis, making such adjustments as seem appropriate in subsequent levies once the true figures are known).

44A

Funding - Lending Between Class A and Class A2

44A.1

The FSCS may:

1. (1) use any money held to the credit of class A2 to pay DGS compensation costs or DGS specific costs; or
2. (2) use any money held to the credit of class A to pay recapitalisation payments,

if the FSCS has reasonable grounds to believe that this would be more cost effective than borrowing funds from a third party or raising a levy.

44A.2

For the purposes of:

1. (1) 44A.1(1), class A2 is the 'lender class' and class A is the 'borrower class'; and
2. (2) 44A.1(1), class A is the 'lender class' and class A2 is the 'borrower class'.

44A.3

Where the FSCS acts in accordance with 44A.1, it must ensure that:

1. (1) reimbursement is made as soon as reasonably practicable;
2. (2) interest is credited as if the borrower class were paying interest at a rate equivalent to the Official Bank Rate from time to time in force; and
3. (3) the amount lent by the lender class to the borrower class is taken into account by the FSCS when considering whether to impose a DGS compensation costs levy or recapitalisation payment levy (as applicable) on the lender class.

45

Funding - Obligation to Pay

45.1

This Chapter does not apply to the _FSCS_.

45.2

A _firm_ must pay to the _FSCS_ its share of each:

1. (1) _DGS management expenses levy_;
2. (2) _DGS compensation costs levy_ allocated to _class A_ ; and
3. (3) recapitalisation payment levy allocated to class A2.

45.3

If a _firm_ does not pay the total amount of its share of a _DGS levy_ or recapitalisation payment levy, before the end of the date on which it is due, it must pay an additional amount as follows:

1. (1) if the _DGS levy_ or recapitalisation payment levy was not paid in full before the end of the due date, an administrative fee of £250; and
2. (2) interest on any unpaid part of the _DGS levy_ , recapitalisation payment levy or administrative fee at the rate of 5% per annum above the Official Bank Rate from time to time in force, accruing on a daily basis from the date on which the amount concerned became due.

46

Funding - Overpayments and Deferral of Payments

46.1

The _FSCS_ may reduce, remit or refund any overpaid amounts paid by a _DGS member_ in respect of a particular period, due to a mistake of law or fact by the _DGS member_ provided that the claim is made by the _DGS member_ not more than two years after the beginning of the period to which the overpayment relates.

46.2

The _PRA_ may defer, in whole or in part, a _DGS member?s_ obligation to pay a _DGS compensation costs levy_ if the _PRA_ considers that such contributions would jeopardise the liquidity or solvency of the _firm_. Such deferral shall not be granted for a longer period than six months but may be renewed upon request of the _firm_.

46.2A

The PRA may defer, in whole or in part, a class A2 member?s obligation to pay a share of a recapitalisation payment levy if the PRA considers that such contributions would jeopardise the liquidity or solvency of the firm. Such deferral shall not be granted for a longer period than six months but may be renewed upon request of the firm.

46.3

Any contributions deferred pursuant to 46.2 or 46.2A shall be paid when the payment no longer jeopardises the liquidity and solvency of the _firm_.

47

Funding - Payment of Levies

47.1

This Chapter does not apply to the _FSCS_.

47.2

A _firm_ must pay its share of a _DGS levy_ in one payment.

47.2A

A firm must pay its share of a recapitalisation payment levy in one payment.

47.3

A _firm?s_ share of a _DGS levy_ is due on, and payable within, 30 days of the date when the invoice is issued.

47.3A

A firm?s share of a recapitalisation payment levy is due on, and payable within, 30 days of the date when the invoice is issued.

47.4

A _firm_ must pay its share of a _DGS levy_ or recapitalisation payment levy by either direct debit, credit transfer (e.g. BACS or CHAPS), cheque, Maestro, Visa Debit or by credit card (Visa/Mastercard/American Express only).

47.5

If a _firm_ ceases to be a _DGS member_ part way through a financial year of the _deposit guarantee scheme_ :

1. (1) it will remain liable for any unpaid levies which the _FSCS_ has already made on the _firm_ ; and
2. (2) the _FSCS_ may make one or more levies upon it (which may be before or after the _firm_ has ceased to be a _DGS member_ but must be before it ceases to be a _firm_) for the costs which it would have been liable to pay had the _FSCS_ made a levy on all _DGS members_ in the financial year it ceased to be a _DGS member_.

48

Funding - Transfer of Levies (Deleted)

48.1

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Transitional Provisions ? Marking Effectiveness Report (Deleted)

50

Transitional Provisions ? Single Customer View (Deleted)

51

Transitional Provisions ? Single Customer View Effectiveness Report (Deleted)

52

Transitional Provisions ? Class A Tariff Base Calculation (Deleted)

53

Transitional Provisions ? Application of COMP [Deleted]

53.1

[Deleted]

53.2

[Deleted]

54

Transitional Provisions - Firms? Additional Disclosure Obligations

54.1

[Deleted]

54.2

[Deleted]

54.3

As soon as practicable after 30 November 2025 and in any event by 1 June 2026, a firm must provide to a depositor:

1. (1) the information sheet; and
2. (2) the exclusions list.

54.4

For the purpose of 16.2, from 1 December 2025 until 31 May 2026, a firm may use the information sheet and exclusions list that was in compliance with the rules in force immediately before 1 December 2025.

54.5

Before 1 June 2026, for the purposes of complying with rules 23.3A to 23.3D, a firm may use the compensation sticker and compensation poster that was in compliance with the rules in force immediately before 1 December 2025.

55

Transitional Provisions - Firms? Disclosure Obligations (Supervening Rules) (Deleted)

56

Transitional Provisions ? Deposit Compensation Information ? Branches and Websites (Supervening Rules) (Deleted)

57

Transitional Provisions ? Withdrawals [Deleted]

57.1

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Transitional Provisions ? Coverage Level (Deleted)

Annex 1 ? Information Sheet (Chapter 16)

The Financial Services Compensation Scheme (?FSCS?) protects deposits made by most individuals and businesses. Your account statement will confirm whether your deposits with [name of firm] are eligible for FSCS protection. Details of certain exclusions from the FSCS?s protection are set out in the exclusions list after this information sheet.

Limit of protection

£120,000 per depositor per bank, building society or credit union.

If [name of firm] goes out of business the eligible deposits with [names of brands under the same deposit-taking licence] will be added up and the £120,000 will be applied to the total balance. For example, if you hold a savings account with £80,000 and a current account with £50,000, FSCS will pay you £120,000 and you may lose £10,000.

To ensure the FSCS can pay you promptly please ensure that [name of firm] has your up-to-date contact details including your email address.

Joint and group accounts

Each eligible account holder is entitled to £120,000 protection in total. For example, if there are two account holders, you will each be entitled to £120,000 protection, giving a total of £240,000.

Eligible deposits in business accounts are treated as if made by a single depositor. This means these types of account will only be protected up to £120,000.

Temporary high balances

If you have a temporary high balance you may be entitled to more than £120,000 protection for six months from when the amount was first deposited or legally transferred. Temporary high balances are deposits connected with certain events, including:

1. (a) Transactions relating to the purchase and sale of your main home.
2. (b) Major life events such as death, your marriage or civil partnership, divorce, retirement, redundancy, disability or incapacity.
3. (c) Compensation for personal injuries or wrongful conviction.

How the FSCS will pay you

FSCS will typically return deposits within seven business days by cheque or electronic payment into an alternative account. Payments may take longer in exceptional circumstances, for example if there is a temporary high balance, or the deposit is held on behalf of underlying beneficiaries.

Contact details for further questions about your account

[insert name of firm and contact details]

Contact details for more information on FSCS protection

You can find more information on FSCS protection on its website at www.fscs.org.uk or by contacting the FSCS using the details below:

Telephone: 0800 678 1100

Email:

Acknowledgement of receipt by the depositor:

Annex 2 ? Content of Compensation Stickers and Posters (Chapter 23)

1 | The compensation stickers must contain the following statements only:

---|---

| UK banks

building societies

credit unions Northern Ireland credit unions

An overseas firm, if:

(a) the firm has a Part 4A permission that includes accepting deposits; and

(b) deposits are held by a UK establishment of the firm

| (1) | "Your eligible deposits held by a UK/Gibraltar [delete as appropriate] establishment of [insert name of firm] are protected up to a total of £120,000 by the Financial Services Compensation Scheme, the UK's deposit guarantee scheme. Any deposits you hold above the limit are unlikely to be covered.

Please ask/click here [delete as appropriate] for further information or visit [www.fscs.org.uk]."

As an alternative, for credit unions or Northern Ireland credit unions that accept deposits under a single brand or trading name:

"Your eligible deposits are protected up to a total of £120,000 by the Financial Services Compensation Scheme, the UK's deposit guarantee scheme. Any deposits you hold above the limit are unlikely to be covered. Please ask/click here [delete as appropriate] for further information or visit [www.fscs.org.uk]."

| UK branch of a Gibraltar-based credit institution

| (2) | "Your eligible deposits with [insert name of firm] are protected up to a total of [insert Gibraltar coverage limit including applicable currency] by the Gibraltar Deposit Guarantee Scheme and are not protected by the UK Financial Services Compensation Scheme. Any deposits you hold above the [insert Gibraltar coverage limit including applicable currency] limit are unlikely to be covered.

Please ask/click here [delete as appropriate] for further information or visit [insert website address of scheme]."

2 | The compensation posters must contain the following statements only:

| UK banks

building societies

credit unions Northern Ireland credit unions

An overseas firm, if:

(a) the firm has a Part 4A permission that includes accepting deposits; and (b) deposits are held by a UK establishment of the firm.

| (1) | Firms that accept deposits under a single brand or trading name

"Your eligible deposits held by a UK/Gibraltar [delete as appropriate] establishment of [insert name of firm] are protected up to a total of £120,000 by the Financial Services Compensation Scheme, the UK's deposit guarantee scheme. Any deposits you hold above the limit are unlikely to be covered.

Please ask/click here [delete as appropriate] for further information or visit [www.fscs.org.uk]."

As an alternative, for credit unions or Northern Ireland credit unions that accept deposits under a single brand or trading name: "Your eligible deposits are protected up to a total of £120,000 by the Financial Services Compensation Scheme, the UK's deposit guarantee scheme. Any deposits you hold above the limit are unlikely to be covered.

Please ask/click here [delete as appropriate] for further information or visit [www.fscs.org.uk]."

| (2) | Firms that accept deposits under multiple brands or trading names

"Your eligible deposits held by a UK/Gibraltar [delete as appropriate] establishment of [insert name of firm] are protected up to a total of £120,000 by the Financial Services Compensation Scheme, the UK's deposit guarantee scheme. This limit is applied to the total of any deposits you have with the following: [insert names of brands as appropriate]. Any total deposits you hold above the limit between these brands are unlikely to be covered.

Please ask/click here [delete as appropriate] for further information or visit [www.fscs.org.uk]."

| UK branch of a Gibraltar-based credit institution

| (3) | UK branch of a Gibraltar-based credit institution that accepts deposits under a single brand or trading name

"Your eligible deposits with [insert name of firm] are protected up to a total of [insert Gibraltarian coverage limit including applicable currency] by the Gibraltar deposit guarantee scheme and are not protected by the UK Financial Services Compensation Scheme. Any deposits you hold above the [insert Gibraltarian coverage limit including applicable currency] limit are unlikely to be covered. Please ask/click here [delete as appropriate] for further information or visit [insert website address of scheme]."

| (4) | UK branch of a Gibraltar-based credit institution that accepts deposits under multiple brands or trading names

"Your eligible deposits with [insert name of firm] are protected up to a total of [insert Gibraltarian coverage limit including applicable currency] by the Gibraltar deposit guarantee scheme and are not protected by the UK Financial Services Compensation Scheme. This limit is applied to the total of any deposits you have with the following: [insert names of brands as appropriate]. Any total deposits above the [insert Gibraltarian coverage limit including applicable currency] limit are unlikely to be covered. Please ask/click here [delete as appropriate] for further information or visit [insert website address of scheme]."

3 | Each of the statements in 1, 2 and 5 must appear as written with the first and second statements on separate lines. The second statement must appear in smaller font.

4 | In 1(1), 2(1), 2(2) and 5 the limit figures must appear in bold font.

5 | The general FSCS compensation sticker and the general FSCS compensation poster must contain the following statements only:

| | "Your eligible deposits held by a UK establishment of a PRA regulated bank are protected up to a total of £120,000 by the Financial Services Compensation Scheme, the UK's deposit guarantee scheme. This limit is applied to the total of any deposits you have with the same PRA regulated bank (which may operate under multiple brands or trading names). Any deposits you hold above the limit with the PRA regulated bank are unlikely to be covered. Please ask/click here [delete as appropriate] for further information or visit [www.fscs.org.uk]"

Annex 3 ? Exclusions List (Chapter 16)

Section A1

As set out in the Depositor Protection Information Sheet, deposits held by individuals and businesses will be generally eligible for FSCS protection up to the compensation limit. However, some exclusions do apply. Details of the most common exclusions are set out below. For full details of the exclusions please see the Depositor Protection Part of the PRA Rulebook.

A deposit is excluded from protection if it meets any of the following criteria:

(1) The account holder is:

- * a credit institution
- * a financial institution
- * an investment firm
- * an insurance undertaking
- * a reinsurance undertaking
- * a collective investment undertaking
- * a pension or retirement fund
- * a public authority, other than a small local authority.

Note that:

1. a) Deposits held on behalf of underlying beneficiaries who are eligible for FSCS protection, are not excluded.
 2. b) Personal pension schemes, stakeholder pension schemes or occupational pension schemes for micro, small and medium sized companies are not excluded.
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1. (2) It is not held at a UK establishment of a bank, building society or credit union. Or, in the case of a bank, building society or credit union incorporated in the UK, it is not held at an establishment in Gibraltar.
 2. (3) The deposit is involved in any transactions where there is a link to a criminal conviction for money laundering. For example, it is transferred from an account held by someone who has been convicted of money laundering.

Section A [Deleted]

1. (1) [Deleted]
2. (2) [Deleted]
3. (3) [Deleted]

Section B [Deleted]

1. (1) [Deleted]
2. (2) [Deleted]
3. (3) [Deleted]

Section C [Deleted]

1. (1) [Deleted]
2. (2) [Deleted]
3. (3) [Deleted]
4. (4) [Deleted]
5. (5) [Deleted]
6. (6) [Deleted]
7. (7) [Deleted]
8. (8) [Deleted]
9. (9) [Deleted]

Annex 4 ? Coverage Information (Chapter 54) [Deleted]

[Deleted]